

- (d) More than one of the above
(e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (b)

The new type of political consciousness in India during the British rule primarily grew during the second half of the 19th century, from around 1850 to 1900. This period saw the emergence of organized political movements and the formation of the Indian National Congress, which played a crucial role in the Indian independence struggle. The growth of nationalist sentiment and the demand for self-governance gained momentum during this time, as the Indian people became increasingly aware of their political rights and the need for greater autonomy from the British colonial rule.

- 13. 'The Advisory Committee' of the Constituent Assembly of India was formed for which of the following affairs?**
(a) For linguistic affairs (b) For substantive affairs
(c) For procedural affairs (d) More than one of the above
(e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (d)

An Independent India Constituent Assembly established various Committees to examine the various departments involved in constitution-making. The constituent assembly had 22 committees in total. Only eight of them—the minor and supporting committees—were among the most significant. Ten committees handled procedures. Twelve committees handled substantive matters. The Drafting Committee is undoubtedly very significant in the history of Indian politics because of its crucial role in drafting a constitution.

Articles of the Constitution

- 1. Indian Constitution consists of –**

- (a) 300 Articles (b) 350 Articles
(c) More than 400 Articles (d) 500 Articles

42nd B.P.S.C. (Pre) 1997

Ans. (c)

Originally, there were 22 Parts, 395 Articles and 12 Schedules in the Constitution of India. A number of articles were added and removed later through Constitutional amendments and divided into 25 parts.

- 2. The Indian Constitution comprises of-**

- (a) 395 Articles, 22 Parts and 12 Schedules
(b) 371 Articles, 21 Parts and 11 Schedules

- (c) 372 Articles, 20 Parts and 7 Schedules
(d) 381 Articles, 23 Parts and 8 Schedules

53rd to 55th B.P.S.C. (Pre) 2003

Ans. (a)

See the explanation of the above question.

- 3. Match the following:**

- | | |
|-----------------------------|----------------------|
| I. Union List | A. 97 entries |
| II. State List | B. 47 entries |
| III. Concurrent list | C. 66 entries |

Code :

- | | | | |
|-----|---|----|-----|
| | I | II | III |
| (a) | A | B | C |
| (b) | A | C | B |
| (c) | A | A | B |
| (d) | C | B | A |

- (e) None of the above/ More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

The correct match is as follows :

- | | | |
|-----------------|---|----------------------------|
| Union List | - | 97 entries (Currently 100) |
| State List | - | 66 entries (Currently 61) |
| Concurrent list | - | 47 entries (Currently 52) |

- 4. Prevention of cruelty to animals is listed in which list of the Indian Constitution?**

- (a) Union List (b) State List
(c) Concurrent List (d) Preamble
(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (c)

Prevention of cruelty to animals is listed in the Concurrent List of the seventh schedule of the Constitution of India.

- 5. Which of the following Subject lies in the Concurrent List?**

- (a) Agriculture (b) Education
(c) Police (d) Defence

47th B.P.S.C. (Pre) 2005

Ans. (b)

Currently there are 52 Subjects defined and enlisted under List - III of the 7th Schedule of the Constitution of India, which form the joint domain of both the State Governments and the Union Territories of India as well as the Central Government of India. Initially, Education was the subject of State List, but under 42nd Amendment of the Constitution, 1976 Education became a concurrent list subject which enables both Central and State Government to legislate on the subject matter of Education.

6. Constitution's Tenth Schedule relates to-

- (a) National Language of India
- (b) Administration of SC's and ST's Area
- (c) Judicial Review
- (d) Anti-defection Law

41st B.P.S.C. (Pre) 1996

Ans. (d)

The tenth Schedule which contains Anti-defection law was added by 52nd Amendment Act, 1985 in the Indian Constitution. It contains provision regarding Anti-defection Law and lays down the process by which any legislator may be disqualified on the ground of defection.

7. Land Reform comes under the subjects of –

- (a) Union list
- (b) Concurrent list
- (c) State list
- (d) none of these

43rd B.P.S.C. (Pre) 1999

Ans. (c)

Land Reforms are the subject of State list. "Land Reform Act has been added to Schedule IX of the Constitution" by 1st Amendment Act, 1951 to provide Constitutional protection to states on matters of Reform Acts.

8. Match List -I with list-II and select the correct answer using the codes given below the Lists :

List - I	List - II
A. Formation of Village Panchayat	1. Article 44
B. Uniform Civil Code	2. Article 48
C. Agriculture and Animal Husbandry	3. Article 50
D. Separation of Judiciary from Executive	4. Article 51
E. Promotion of International Peace	5. Article 50

Codes

- (a) A B C D E
3 4 2 1 5
- (b) A B C D E
5 3 2 1 4
- (c) A B C D E
2 3 5 4 1
- (d) A B C D E
1 5 3 4 2

(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (e)

The correctly matched list is as follows:

List-I	List-II
Organization of Village Panchayat	- Article 40
Uniform Civil Code	- Article 44
Agriculture and Animal Husbandry	- Article 48
Separation of Judiciary from Executive	- Article 50
Promotion of International Peace	- Article 51
Thus, option (e) is the correct answer.	

9. Which of the following is not a part in the eleventh schedule of the constitution?

- (a) Libraries
- (b) Fuel and fodder
- (c) Rural sports
- (d) Technical Training
- (e) None of the above/more than one of the above.

67th B.P.S.C. (Pre) 2021

Ans. (c)

Panchayat is mentioned in the 11th schedule of the constitution. In which total 29 subjects are included. Subject like libraries, fuel and folder, technical training and vocational education, drinking water, rural housing, minor forest produce, fisheries etc. are includes in this, but rural sports is not mentioned in the eleventh schedule.

10. What was the duration in the making of the Indian Constitution?

- (a) 2 years 11 months and 18 days
- (b) 1 year 10 months and 12 days
- (c) 2 years 10 months and 5 days
- (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (a)

Indian Constitution took precisely 2 years, 11 months, 17 days to create the Constitution of India. The Constitution of India was adopted on 26 January 1950. The 299 member Constituent Assembly drafted the Constitution of India over three years. The first session of the Constituent Assembly was held on 11 December 1946, where Dr. Rajendra Prasad was unanimously elected as its President.

11. The provision of amending the constitutional provision is given in

- (a) Part XIX, Article 356
- (b) Part XX, Article 356
- (c) Part XX, Article 368
- (d) Part XXI, Article 368
- (e) None of the above/More than one of the above

B.P.S.C. CDPO 2018

Ans. (c)

Article 368 in Part XX of the constitution deals with the power of Parliament to amend the constitution and its procedure. Article 368 (2) An Amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either House of Parliament.

12. Who of the following called the constitution of India, ‘a lawyers paradise’?

- (a) K.V. Rao (b) B. Shiva Rao
- (c) Ivor Jennings (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (c)

Sir Ivor Jennings called the Constitution of India a “lawyer's paradise” because the legal language and phraseology adopted by the constitution-makers makes it a complex document.

13. Which of the following system provides ‘every man the right to be his own oppressor’?

- (a) The Democracy (b) The Autocracy
- (c) The monarchy (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (d)

This quote is commonly associated with Monarchy and Autocracy. Source–O.P. Gauba (Principles of Political Science) Book.

The Preamble

1. The preamble of the Constitution of India guarantees justice. It means India allows its people

- (a) To elect their representatives
- (b) To have certain basic rights
- (c) To participate in the decision making
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 1-5}–2024

Ans. (b)

The preamble of the constitution of India guarantees justice. It means India allow its People to have certain basic right. The Preamble declares India as a sovereign, socialist, secular, and democratic republic. It aims to secure justice, liberty, and equality for all citizens and to promote fraternity, ensuring the unity and integrity of the nation.

2. The Preamble of the constitution of India was termed as ‘The Political Horoscope’ by who of the following?

- (a) By K.T. Shah (b) By K.M. Munshi
- (c) By J. V. Kripalani (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (b)

KM Munshi described the Preamble of the Indian Constitution as the "political horoscope" of the Constitution. Munshi was a prominent Indian independence activist, politician and writer who played a key role in the drafting of the Indian Constitution.

3. In the context of the Preamble of Indian Constitution which of the following sequence is correct?

- (a) Republic, People’s, Democratic, Secular, Socialist, Universal, Sovereign
- (b) Sovereign, Socialist, Democratic, People’s, Secular, Republic
- (c) Sovereign, Socialist, People’s, Democratic, Secular, Socialist Republic
- (d) Sovereign, Socialist, Secular, Democratic, Republic

40th B.P.S.C. (Pre) 1995

Ans. (d)

The Preamble to the Indian Constitution as amended by the 42nd Amendment in 1976 is "We the People of India, having solemnly resolved to constitute India into a Sovereign, Socialist, Secular, Democratic Republic...." The word 'People’s' is not mentioned in the Preamble of Indian Constitution. This particular word has been mentioned in the Constitution of China. Thus option (d) is the correct answer.

4. Consider the following statements regarding the 42nd Amendment to the Constitution of India:

1. It added three words to the Preamble—‘Socialist’, ‘Secular’ and ‘Integrity’.
2. It added eight Fundamental Duties to the Constitution.
3. It added new Directive Principles, i.e., Article 39A, Article 43A and Article 47.
4. It granted power to the President, in consultation with the Election Commission, to disqualify members of the State Legislatures.

Which of the above statements are incorrect?

- (a) 1 and 2 (b) 3 and 4

(c) 2 and 3

(d) 1 and 4

69th B.P.S.C. (Pre) 2023

Ans. (c)

The 42nd Constitutional Amendment Act of 1976 is popularly known as “mini constitution”. This amendment amended the Preamble to the Constitution, 40 articles and the seventh schedule, and added 14 new articles and two new parts to the Constitution. Significantly, it added 10 Fundamental Duties to the Constitution in Part 4th (A) on the recommendations of Swaran Singh Committee. It also added three new words (i.e. socialist, secular and integrity) in the Preamble.

5. In which form is India declared in the Preamble of Indian Constitution?

- (a) A Sovereign, Democratic, Republic
- (b) A Socialist, Democratic, Republic
- (c) A Sovereign, Socialist, Secular, Democratic Republic
- (d) None of these

42nd B.P.S.C. (Pre) 1997

Ans. (c)

Preamble of the Constitution:

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens: JUSTICE, social, economic and political; LIBERTY of thought, expression, belief, faith and worship; EQUALITY of status and of opportunity; and to promote among them all FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;
IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

6. Consider the following words.

- (A) Socialist (B) Democratic
- (C) Sovereign (D) Secular

Choose the correct sequence of words as given in the Preamble.

- (a) C, A, D and B (b) C, D, A and B
- (c) C, D, B and A (d) D, A, C and B

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a)

See the explanation of the above question.

7. The term ‘Socialist’ was added in the Preamble by the -

- (a) 42nd Amendment (b) 44th Amendment

(c) 52nd Amendment

(d) None of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (a)

In 1976, the Preamble to the Constitution was modified by the 42nd Amendment. The characterization of India as ‘Sovereign Democratic Republic’ changed to ‘Sovereign Socialist Secular Democratic Republic.’ The term ‘Unity of the Nation’ was changed to ‘Unity and Integrity of the Nation.’

8. India has people’s sovereignty because the Preamble of the Constitution begins with the words :

- (a) Democratic India (b) Republic of People
- (c) Democracy of People (d) We, the People of India

39th B.P.S.C. (Pre) 1994

Ans. (d)

The Preamble to the Constitution starts with the words- “We the People of India....” These words indicate the Sovereignty of people or citizens of India. It means that people of India are not governed by any external power but are governed by the Constitution.

The Governance System

1. Which one of the following characteristics is not true for unitary form of Government?

- (a) Swift decision
- (b) Flexible
- (c) Ideal for large countries
- (d) Uniformity of laws
- (e) None of the above /More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (c)

Characteristics of a unitary form of Government are— Strong Centre, Single Constitution, Flexibility of the Constitution, Emergency provisions, Single Citizenship, Integrated judiciary, All-India Services, Integrated Audit Machinery, Parliament's Authority over state list, Appointment of Governor, Integrated Election machinery, Veto over State Bills.

It cannot be outrightly said that it is ideal for large countries; it only depends on countries will. So, the answer to this question will be (c).

2. The Democracy of India is based on the fact that –

- (a) The Constitution is written
- (b) Fundamental rights have been provided

- (c) Public enjoys the rights to choose and change the Government
- (d) Directive principles of state policy have been provided here

39th B.P.S.C. (Pre) 1994

Ans. (c)

The democracy of India is based on the fact that People have right to elect their representatives, who form the Government. It is a political system where people are supreme and have freedom to choose and change government at the time of election.

3. Which one of the following statements is correct regarding parliamentary form of government?

- (a) The Legislature is responsible to judiciary
- (b) The Legislature is responsible to Executive
- (c) The Legislature and the Executive are independent
- (d) The president is responsible to Judiciary
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (e)

Features of parliamentary form of Government are –

1. Executive is responsible to the legislature
2. Majority Party rule
3. Collective Responsibility
4. Nominal and Real Executives
5. Political Homogeneity
6. Double membership
7. Leadership of Prime Minister
8. Dissolution of lower House
9. Secrecy of procedure

4. What is the nature of the Indian Constitution ?

- (a) Federal
- (b) Unitary
- (c) Parliamentary
- (d) Federal in nature but unitary in spirit
- (e) None of the above / More than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (d)

India is not a complete Federal system because some provisions in Indian Constitution give it a unitary character. So Indian constitution is federal in nature but unitary in spirit. However, a number of Constitutional experts accept it as a federal state as there is a division of powers between Union and States. Political Scientist like Prof. K.C. Wheare describes it as "a quasi-federal state".

States and the Union Territories

1. Who among the following was the members of the State Re-organisation Commission (SRC) in 1953?

- (a) K. M. Panikkar (b) Hriday Nath Kunzru
- (c) Fazal Ali (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 1-5}–2024

Ans. (d)

Fazl Ali Commission also known as the States Reorganization Commission was formed in 1953 to ponder upon the demands of different states.

Members : Justice Fazal Ali, Sardar K. M. Panikkar, and Hriday Nath Kunzru.

Main Recommendations –

- Accepted language as one of the basis for state reorganisation.
- Advocated for the establishment of 16 states and 3 centrally administered territories.

Based on these recommendations, the State Reorganisation Act 1956 was passed, creating 14 centrally governed states and 6 union territories.

It also led to the passing of the 7th Constitutional Amendment Act in 1956, which replaced the four types of states known as Part A, B, C, and D with two categories: States and Union territories.

2. After Independence, in which year were the Indian States reorganized on the linguistic basis?

- (a) 1947 (b) 1951
- (c) 1956 (d) 2000
- (e) None of the above / More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (c)

In 1953, Government of India created the first linguistic state known as Andhra Pradesh.

However large scale reorganisation of the states on linguistic basis started in the year 1956.

3. Which of the following states in independent India, were formed on Linguistic basis?

- (a) Tamil Nadu and Karnataka
- (b) Maharashtra and Gujarat
- (c) Andhra Pradesh and Haryana
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (d)

Most of the states formed on linguistic basis in India including -Andhra Pradesh (1953, Telugu speaking), Maharashtra (1960, Marathi Speaking), Gujarat (1960, Gujarati-speaking), Punjab (Reorganized in 1966, creating a distinct Punjabi-speaking state with the formation of Haryana), Karnataka (1956, Kannada-speaking), Tamil Nadu (1956, Tamil-speaking) etc.

4. The Chief Minister of Union Territory, where such a setup exists, is appointed by the

- (a) President
- (b) Prime Minister
- (c) Vice President
- (d) Lieutenant Governor
- (e) None of the above/More than one of the above

B.P.S.C. CDPO 2018

Ans. (a)

According to article 239 AA Clause (5), The Chief Minister of the Union Territory shall be appointed by The President and other Ministers shall be appointed by the President on the advice of the Chief Minister and the Minister shall hold office during the pleasure of the President.

5. Creation of a new state requires a majority for Constitutional Amendment.

- (a) Simple
- (b) Two-third
- (c) Three-fourth
- (d) Two-third plus ratification by half of all states
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (a)

Parliament may form new states or alter the boundaries etc., of existing states by a simple majority and by the ordinary legislative process. No such law shall be deemed to be an amendment of the constitution for the purpose of Article 368.

6. Delhi is a/an –

- (a) State
- (b) Union territory
- (c) Autonomous Council
- (d) None of these

42nd B.P.S.C. (Pre) 1997-98

Ans. (b)

Delhi is a Union Territory according to the 1st Schedule of the Constitution. Officially, it is also known as the National Capital Region and has been given the special status among the Union Territories by the 69th Amendment Act, 1991.

7. Sikkim became a state of India under-

- (a) 30th Amendment
- (b) 32nd Amendment
- (c) 35th Amendment
- (d) 40th Amendment

38th B.P.S.C. (Pre) 1999

Ans. (c)

Sikkim, the north-eastern State of India became the 22nd State by the 36th Amendment to the Constitution in 1975. In 1974, the Sikkim Assembly passed a Government of Sikkim Act, 1974, which paved the way for setting up the first ever responsible Government in Sikkim and sought Sikkim's representation in the political institutions of India. The Union government also passed the 35th Amendment Act 1974 which inserted a new Article 2A {Sikkim to be Associate State} and as 36th Amendment Act, 1975 integrated Sikkim as the full-fledged state of India (22nd State). As 36th Amendment is not in the given option, so the 35th Amendment will be the correct answer.

8. A separate Vananchal State carved out of Bihar can be made possible by –

- (a) Passing the legislation in State Assembly
- (b) Passing the ordinance by the Governor
- (c) Completing Constitutional formalities
- (d) None of these

43th B.P.S.C. (Pre) 1999

Ans. (d)

The power to form a new State by separation of territory from any State has been given to the Parliament under Article 3 of the Constitution. Thus option (d) is correct.

9. In which year did the State Jharkhand come into existence?

- (a) 1988
- (b) 1999
- (c) 2000
- (d) 2001
- (e) None of the above / More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (c)

Sikkim became a part of Indian Republic on 16 May, 1975. Arunachal Pradesh was formed in 1987. Chhattisgarh (carved out of Madhya Pradesh) was formed on 1 November, 2000 whereas Jharkhand was formed on 15 November, 2000 by carving southern part of Bihar.

10. Bihar as an Indian State was formed in:

- (a) 1911
- (b) 1912
- (c) 1936
- (d) 2000
- (e) None of the above / More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (b)

Bihar was formed on 22 March 1912 (According to Bihar state government website).

The Citizenship

1. Indian citizenship cannot be obtained by –

- (a) Birth
- (b) Naturalization
- (c) Absorbing any part of land
- (d) Depositing money in Indian Banks

41st B.P.S.C. (Pre) 1996

Ans. (d)

According to Indian Citizenship Act 1955 (as amended), the citizenship may be acquired on the basis of- (1) By Birth (2) Descent (3) Registration (4) Naturalization (5) Incorporation of Territory. Depositing Money in Indian banks is a commercial action, not a basis to acquire citizenship as per the Constitution.

2. When was the Citizenship (Amendment) Act passed?

- (a) 11th December, 2018 (b) 11th December, 2019
- (c) 11th October, 2019 (d) 11th October, 2020
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (b)

On 11th December 2019, Rajya Sabha passed the contentious Citizenship (Amendment) Bill 2019, with 125 votes in favor and 99 against. The Bill was passed by the Lok Sabha on 9th December 2019. The Act amends the Citizenship Act, 1955 and for the first time, will grant citizenship based on religion to non-muslim communities from Afghanistan, Bangladesh and Pakistan who entered India on or before December 31, 2014.

Fundamental Rights

1. The phrase 'equality before law' used in Article 14 of the Indian Constitution has been borrowed from the Constitution of

- (a) France (b) Britain
- (c) USA (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (b)

Article 14 of the Indian Constitution says—The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth. This provision confers rights on all persons whether citizens or foreigners. It is notable that the concept

of 'equality before law' is of British origin while the concept of 'equal protection of Laws' has been borrowed from the Constitution of United States of America.

2. From which country, the Indian Constitution has taken reference for the idea of the Fundamental Rights?

- (a) Ireland (b) United States of America
- (c) United Kingdom (d) Canada

69th B.P.S.C. (Pre) 2023

Ans. (b)

The framers of the Constitution took inspiration for a number of its aspects from other international constitutions. The United States Constitution serves as the paradigm for India's Fundamental Rights. The essential rights that everyone is entitled to in order to live with honor and integrity are known as fundamental rights. The Indian Constitution's Third Part contains these.

The judiciary has the upper hand in interpreting the Constitution thanks to this provision. Thus, if an order issued by the legislature or the executive branch of government conflicts with the nation's Constitution, the court has the authority to overturn it.

3. Which of the following is given the power to enforce the Fundamental Rights by the Constitution?

- (a) All Courts in India
- (b) The Parliament
- (c) The President
- (d) The Supreme Court and High Courts

47th B.P.S.C. (Pre) 2005

Ans. (d)

Article 13 of the Constitution grants power of Judicial Review to the Supreme Court, and High Courts in the case of violation of the Fundamental Rights. The Supreme Court (Art.32) and High Court (Art.226) in exercising their power may declare any law or enactment passed by the Legislature, void or unconstitutional, on the ground of contravention to the Fundamental Rights.

4. What is meant by 'Rule of Law'?

- (a) One act for all and one judiciary for all
- (b) One act for all and one State for all
- (c) One State for all and one judiciary for all
- (d) All acts for one and one judiciary for all
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (a)

The 'Rule of Law' implies that the creation of laws, their enforcement and the relationship among legal rulers are themselves legally regulated, so that no one including the most highly placed official is above the law. The legal constraint on rulers means that the government is subject to existing laws as much as its citizens are. Thus, a closely related notion is the idea of equality before the law, which holds that no legal person shall enjoy privileges that are not extended to all and that no person shall be immune from legal sanctions.

5. Under which Article of the Constitution of India, Fundamental Rights have been provided to citizens?

- (a) Articles 112 to 115 (b) Articles 12 to 35
(c) Articles 222 to 235 (d) None of these

44th B.P.S.C. (Pre) 2000

Ans. (b)

Part III (Art.12-35) of the Constitution enumerates 6 Fundamental Rights which are provided to citizens.

6. The description of fundamental rights for the Indian citizens is in –

- (a) Articles 12 to 35 of the Constitution
(b) Articles 13 to 36 of the Constitution
(c) Articles 15 to 39 of the Constitution
(d) Articles 16 to 40 of the Constitution

39th B.P.S.C. (Pre) 1994

Ans. (a)

See the explanation of the above question.

7. Supreme Court's judgment of Indra Sawhney Vs Union of India Case is related to which issue?

- (a) Regarding the issue of OBC reservation in Government employment
(b) Basic Structure Theory
(c) Approve the reservation on promotion of SC
(d) Extended reservation for ST
(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (a)

In Indra Sawhney etc. vs Union of India and Others, 1992 The Supreme Court held that the reservation under Article 15 (4) and 16 (4) should not exceed 50 percent and the States and the Union have by and large accepted this as correct and it should be held as Constitutional Prohibition and any reservation beyond 50 percent would be liable to struck down.

8. The validity of the order of the Government of India of 13th August, 1990, for the reservation to socially and educationally backward classes, was decided in which of the following years?

- (a) 1991
(b) 1992
(c) 1993
(d) More than one of the above
(e) None of the above

B.P.S.C. PRT 2023 Shift I

Ans. (b)

The government of India issued an order called Memorandum on August 13, 1990. The order states, in addition to SC and ST the new third category that is known as the socially and Educationally Backward classes will also receive the 27% job reservation advantage. It was implemented in year 1992.

9. Which Article of the Constitution gives precedence to Constitutional provisions over the laws made by the Union Parliament/State Legislatures?

- (a) 13 (b) 32
(c) 245 (d) 326

45th B.P.S.C. (Pre) 2001

Ans. (a)

Article 13 of Indian Constitution makes provision that pre-constitutional laws and post-constitutional laws if inconsistent with the provisions of Fundamental Rights enumerated in part III, shall be void to the extent of such inconsistency. Article 245 is related to the extent of laws made by the Parliament and by the Legislatures of the States. Article 326 is related to the election of the Lok Sabha and Legislative Assemblies of the States to be on the basis of adult suffrage, and Article 32 is for the Constitutional remedies. Thus in the given option, (a) seems to be the correct answer.

10. Which Article of the Constitution of India is related with Freedom of the Press.

- (a) Article 19 (b) Article 20
(c) Article 21 (d) Article 22

47th B.P.S.C. (Pre) 2005

Ans. (a)

In the Indian Constitution provision related to freedom of the Press is not given directly but Supreme Court held that right to freedom of speech and expression (Article 19) include right to freedom of the Press.

11. Which one of the following constitutional remedies is also known as 'postmortem'?

- (a) Prohibition
- (b) Mandamus
- (c) Certiorari
- (d) Quo warranto
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (e)

In the certiorari writ, the Supreme Court and the High Court re-examine the decision given by the Subordinate Courts. Through the Quo warranto writ the court enquires into the Legality of a claim of a person to a public office. This writ prevents the illegal assumption of a public office by an individual. Therefore, both the writ have a sense of postmortem. Thus the appropriate answer for this question should be (e), while Bihar Public Service Commission has mentioned option (d) as the correct answer.

12. Which of the following can a court issue for enforcement of the Fundamental Rights?

- (a) Decree
- (b) Writ
- (c) Ordinance
- (d) More than one of the above
- (e) None of the above

B.P.S.C. PRT 2023 Shift II

Ans. (b)

The Fundamental Rights are given in the part III of the Constitution. These are enforceable in a court of law if a violation occurs. Significantly, the Indian Constitution empowers Supreme Court and High Court under Articles 32 and Article 226 respectively to issue writ to safeguard of Fundamental Rights of the Citizen.

13. Which one of the following is not a fundamental right?

- (a) Right to Constitutional Remedy
- (b) Right to Property
- (c) Right to Peaceful Assembly
- (d) Right to free movement all over the Country

42nd B.P.S.C. (Pre) 1997

Ans. (b)

At present, the right to property is a constitutional legal right viz. "No person shall be deprived of his property save by authority of law", under Article 300A, inserted by the 44th Constitutional, Amendment Act, 1978.

14. Choose the fundamental rights available to Indian Citizen but not to aliens:

- I. Freedom of Speech and Expression
- II. Equality Before the Law
- III. Right of Minorities
- IV. Protection of Life and Liberty

- (a) I and III
- (b) I and IV
- (c) II and IV
- (d) II and III
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (a)

Right to freedom of speech and expression under Article 19 and cultural and educational rights of minorities under Article 29 are available to Indian citizens only. They are not available to foreign nationals.

15. The Supreme Court has held that hoisting the National Flag atop the private buildings is a fundamental right of every citizen under:

- (a) Article 14 of the Constitution
- (b) Article 19(1)(a) of the Constitution
- (c) Article 21 of the Constitution
- (d) Article 25 of the Constitution
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

According to the Supreme Court of India, hoisting the national Flag atop the private buildings is a fundamental right of every citizen under Article 19 (1)(a) of the constitution. Article 14 guarantees equality before the law or the equal protection of the laws. Article 21 deals with right to life and personal liberty. Article 25 provides for freedom of conscience and free profession, practice and propagation of religion.

16. Which of the following rights conferred by the Constitution of India is also available to non-citizens?

- (a) Right to Constitutional Remedies
- (b) Freedom of Speech
- (c) Freedom to Move and Settle in any Part of the Country
- (d) Freedom to Acquire Property

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

The right to constitutional remedies is available to both citizens of India and non-citizens (foreigners) but the right to freedom of speech, freely travel throughout the country and to acquire property is given only to the citizens of India.

17. When was the Right to Education added through the amendment in the Constitution of India?

- (a) 1st April, 2010
- (b) 1st August, 2010
- (c) 1st October, 2010
- (d) 1st December, 2010

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

The Constitution (Eighty-Sixth Amendment) Act, 2002 inserted Article 21-A in the Constitution of India to provide free and compulsory education to all children in the age group of six to fourteen years as a fundamental right in such a manner as the State may, by law, determine. The Right of Children to Free and Compulsory Education (RTE) Act, 2009, represents the legislation envisaged under Article 21-A. The RTE Act came into effect on 1 April, 2010.

18. Which one of the following is a human right as well as a fundamental right under the Constitution of India?

- (a) Right to Information (b) Right to Work
(c) Right to Education (d) Right to Housing

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (c)

See the explanation of the above question.

19. Untouchability is abolished by which Article of the Indian Constitution?

- (a) Article 14 (b) Article 15
(c) Article 17 (d) Article 22

69th B.P.S.C. (Pre) 2023

Ans. (c)

Article 17 of the Indian Constitution abolished 'untouchability', forbade its practice in any form and made enforcement of any disability arising out of 'untouchability', an offence punishable in accordance with law.

Directive Principles of State Policy

1. How are Directive Principles of state policy different from Fundamental Right?

- (a) The aforesaid are for the control Government and the above state.
(b) The aforesaid is not a part of the constitution where the above state.
(c) Directive Principles of policy are not enforceable while fundamental right are enforceable.
(d) None of the above

41st B.P.S.C. (Pre) 1996

Ans. (c)

Directive Principles of State Policy are different from Fundamental Rights, as Directive Principles are not enforceable whereas Fundamental Rights are enforceable by the Court. The Directive Principles are described in Part IV of the Constitution and provide for the establishment of a welfare state. While the Fundamental Right mentioned in Part III are the guarantees of security given to the individuals towards the State.

2. The concept of welfare state included in the Constitution of India in the:

- (a) Directive Principles of State Policy
(b) Fourth Schedule of the Constitution
(c) Fundamental Rights
(d) Preamble of the Constitution

41th B.P.S.C. (Pre) 1994

Ans. (a)

The concept of a welfare State is included in the Constitution of India in part IV i.e. Directive Principles of State Policy described in Article 36 to Article 51 of the Constitution.

3. Panchayati Raj System in India is laid down under-

- (a) Fundamental Rights
(b) Fundamental Duties
(c) Directive Principles of State Policy
(d) Election Commission Act

45th B.P.S.C. (Pre) 2001

Ans. (c)

Panchayati Raj System in India is laid down under the Directive Principles of State Policy (Part IV) under Article 40. According to this Article, 'State shall take steps to organize village Panchayats and endow them with such powers and authority as may be necessary to enable these to function as units of self-government'.

4. The Ministry of Panchayati Raj was created in the Central Government of India in which of the following years?

- (a) 2002-2003 (b) 2004
(c) 2005-2006 (d) More than one of the above
(e) None of the above

B.P.S.C. PRT 2023 Shift II

Ans. (b)

Ministry of Panchayati Raj was created in May 2004. The Ministry is headed by a minister of cabinet rank.

5. Which one of the following Articles directs the State Governments to organize the Panchayats?

- (a) Article 33 (b) Article 40
(c) Article 48 (d) Article 50
(e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (b)

Article 40—The state shall take steps to organize village Panchayats and endow them with necessary powers and authority, to enable them to function as units of self - government.

Article 33- Under Rights to Constitutional Remedies (Fundamental Rights), Power of Parliament to modify the rights conferred by this part in their application of forces, etc.
 Article 48- To prohibit the slaughter of cows, calves and other milch and draught cattle and to improve their breeds.
 Article 50- Separation of Judiciary from Executive.

6. Which of the following is/are listed among the Directive Principles in Part-IV of the Constitution of India?

- I. Equal Pay for Equal Work**
 - II. Uniform Civil Code**
 - III. Small family norm**
 - IV. Education through mother tongue at primary level.**
- (a) I, II and III (b) I and II
 (c) II and III (d) I, II and IV
 (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

'Equal Pay for Equal Work for both men and women' (Article 39(d)) and Uniform Civil Code (Article 44) are listed among the Directive Principles in Part IV of the Constitution of India. Article 350 A which directs every State and every local authority within the State to provide adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups, is not listed in the Directive Principles of State Policy given in Part IV of the Constitution.

7. The concept of the Directive Principles of State Policy in the Indian Constitution was borrowed from the Constitution of

- (a) England (b) Switzerland
 (c) Ireland (d) None of the above

69th B.P.S.C. (Pre) 2023

Ans. (c)

Part IV of the Indian Constitution discusses the Directive Principles of State Policy (DPSP) in Articles 36–51. They are taken from the Spanish Constitution and originally appeared in the Irish Constitution. The State possesses a responsibility to apply the Directive Principles of State Policy outlined in the Constitution when enacting legislation, even though they are not subject to legal challenges. Within the boundaries of its economic capacity and development, the State shall direct its policy in a way that secures the rights of all men and women to a sufficient means of subsistence, equitable wages for equal work, and effective provisions for securing the right to employment, education, and public assistance in the event of unemployment, old age, illness, or disablement, or in other cases of unjustifiable need.

Fundamental Duties

1. Fundamental duties were laid down in.

- (a) 40th Amendment (b) 43rd Amendment
 (c) 42nd Amendment (d) 39th Amendment

44th BPSC (Pre) 2000

41st BPSC (Pre) 1996

Ans. (c)

Fundamental duties were included in the Constitution by the 42nd Constitutional Amendment. Under this, Part 4 (A) related to Fundamental duties was included. Originally the number of Fundamental Duties was 10. 11th Fundamental duties was added by the 86th Amendment Act. Fundamental duties are also known as orders of conduct. There are also defined as moral obligations of all citizens.

2. The 10 commandments, which were added by 42nd Amendment Act in Constitution of India, are called as–

- (a) Fundamental Rights
 (b) Fundamental Duties
 (c) Panchayati Raj Principles
 (d) Directive Principles of State Policy

45th B.P.S.C. (Pre) 2001

Ans. (b)

The Swaran Singh Committee had a total of 12 members -

(1) Swaran Singh - Chairman, (2) A.R. Antulay, (3) S.S Ray, (4) Rajni Patel, (5) HR Gokhale, (6) V.A. Sayed Muhammed, (7) V.N. Gadgil, (8) CM Stephen, (9) D P Singh, (10) Dinesh Goswami, (11) Vasanth Sathe, (12) B.N. Banerjee

In 1976 the Congress Party set up the Sardar Swaran Singh Committee to make recommendations about fundamental duties. The need and necessity of which were felt during the operation of the internal emergency (1975-77), it stressed that the citizens should become conscious that in addition to the enjoyment of rights, they also have certain duties to perform.

The Government accepted this report and through 42nd Amendment part IV-A was added to the Constitution. The new part consists of only 1 Article (51-A). Presently there are 11 fundamental duties under this article.

3. Fundamental Duties were incorporated in the Constitution of India by the –

- (a) 32nd Amendment Act (b) 42nd Amendment Act
 (c) 15th Amendment Act (d) 46th Amendment Act

45th B.P.S.C. (Pre) 2001

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (b)

See the explanation of the above question.

4. **The 42nd Amendment Act (1976) has incorporated into the Constitution of India a new chapter on –**

- (a) Administration of Union Territories
- (b) Formation of Inter-State Councils
- (c) Fundamental Duties
- (d) None of these

44th B.P.S.C. (Pre) 2000

Ans. (c)

See the explanation of the above question.

5. **Which one of the following is a Fundamental Duty in India?**

- (a) Separation of judiciary from executive
- (b) To value and preserve the rich heritage of our composite culture
- (c) Free and compulsory education
- (d) Abolition of Untouchability

45th B.P.S.C. (Pre) 2001

Ans. (b)

To value and preserve the rich heritage of our composite culture is a fundamental duty mentioned under Article 51A(f).

6. **Which of the following is the Fundamental Duty under the Constitution of India?**

- (a) To uphold the unity and integrity of India
- (b) To protect the natural environment
- (c) To provide educational opportunities to own child
- (d) More than one of the above
- (e) None of the above

B.P.S.C. PRT 2023 Shift II

Ans. (d)

The Fundamental duties were added to the Constitution by 42nd Amendment in the year 1976. Initially the Fundamental Duties were ten in number which were subsequently increased to eleven by the 86th Amendment in 2002. The Fundamental Duties are enshrined in Article 51-A. All the three option (a), (b), (c) are included under it.

The President

1. **In India, the President is elected by:**

- (a) Direct Election
- (b) Single Transferable Vote System
- (c) Proportional Vote System

(d) Open Ballot System

41st B.P.S.C. (Pre) 1996

Ans. (b & c)

The President of India is elected by the system of proportional representation by means of the single transferable vote and the voting at such election shall be done by secret ballot. This is an indirect method of election. Article 54 describes the method of election of the President.

It says that-

President shall be elected by the members of an electoral college consisting of

- (a) all the elected members of both Houses of Parliament (R.S. + L.S.)
- (b) all the elected members of the Legislative Assemblies of the States.

Here "State" involves National Capital Territory of Delhi and Union Territory of Puducherry as provided by 70th Amendment Act, 1992.

Pay Attention :- Jammu & Kashmir is not included as of now.

Note : The elected members of the Legislative Assembly of the Union Territory of Jammu and Kashmir are not yet included in the President's electoral college.

2. **Electoral College for the election of the President of India consists of -**

- (a) All the elected members of the Rajya Sabha.
- (b) All the elected members of the Lok Sabha.
- (c) All the members of the State Legislative Assemblies.
- (d) All the elected members of both the Houses of Parliament and elected members of the State Legislative Assemblies.
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (d)

See the explanation of the above question.

3. **If there is any dispute regarding the Presidential election, it can be referred to –**

- (a) Attorney General of India
- (b) Parliament
- (c) Supreme Court of India
- (d) None of these

38th B.P.S.C. (Pre) 1992

Ans. (c)

If there is any doubt or dispute regarding the election of the President, it can be referred to the Supreme Court of India (Article 71), whose decision will be final.

4. The President of India can be removed from his post by –

- (a) The Prime Minister of India
- (b) Lok Sabha
- (c) Chief Justice of India
- (d) Parliament

39th B.P.S.C. (Pre) 1994

47th B.P.S.C. (Pre) 2005

Ans. (d)

According to Article 56(1)(b), the President can be removed from his/her office by impeachment for the violation of the Constitution and the process of impeachment can be started by either Houses of the Parliament in accordance with provisions of Article 61.

5. If the position of President and Vice-President are vacant, who officiates as the President of India?

- (a) The Prime Minister
- (b) The Chief Justice of India
- (c) The Speaker of Lok-Sabha
- (d) None of these

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (b)

The President (Discharge of Functions) Act, 1969 of India provides that the Chief Justice of India (CJI) shall act as the President of India in the event of the office of both the President and Vice – President being vacant. In the absence of CJI, the senior most Judge of Supreme Court shall perform the functions of the President.

6. The Indian President is eligible for re-election for how many times?

- (a) Once
- (b) Twice
- (c) Thrice
- (d) Any number of times
- (e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre)-2021

Ans. (d)

Article 57 of the constitution of India deals with the eligibility conditions for the re-election of the President, according to that any person, who holds, or has held office as President shall, subject to the other provisions of this Constitution be eligible for re-election to that office. Thus, the President of India is eligible for re-election any number of times.

7. Who is the Executive Head of State in India?

- (a) President
- (b) Prime Minister
- (c) Leader of the Opposition

(d) Chief Secretary, Government of India

44th B.P.S.C. (Pre) 2000

Ans. (a)

According to Article 53 (1), the executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with the Constitution.

8. Who of the following has been vested with the executive powers of the central government under the constitution of India?

- (a) President of India
- (b) Prime Minister of India
- (c) Central Cabinet
- (d) All the above

42nd B.P.S.C. (Pre) 1997

Ans. (a)

See the explanation of the above question.

9. President of India exercises his powers –

- (a) Either directly or through officers subordinate to him
- (b) Through Ministers
- (c) Through Prime Minister
- (d) Through Cabinet
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (a)

Article 52 of the Indian Constitution provides that there shall be a President of India. According to Article 53(1) "the executive power of the Union shall be vested in the President and shall be exercised by him either's directly or through officers subordinate to him in accordance with this Constitution".

10. The President:

- (a) Is not a part of the Parliament
- (b) Is a part of the Parliament
- (c) Is a part of the Parliament and sits in the Parliament
- (d) Can vote in the Parliament
- (e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (b)

Under the Constitution, the Parliament of India consists of three parts viz, the President, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha). Though the President of India is not a member of either House of Parliament and does not sit in the Parliament to attend its meetings, he is an integral part of the Parliament.

11. Indian Constitution doesn't empower the President of India with the right of:

- (a) Appointment of Prime Minister
- (b) Appointment of Chief Minister in states
- (c) Being the Supreme Commander of Defence Forces
- (d) Executing emergency in any part of the country

38th B.P.S.C. (Pre) 1992

Ans. (b)

According to the Article 164(1), the Chief Minister is appointed by the Governor, not by the President of India.

12. The President of India does not have the right to –

- (a) Give pardon
- (b) Remove a judge of Supreme Court
- (c) Declare emergency
- (d) Pass ordinances

41st B.P.S.C. (Pre) 1996

Ans. (b)

The President of India does not have the right to remove a judge of the Supreme Court. The provision regarding this is discussed in the Article 124(4) of the Constitution which says "A Judge of the Supreme Court shall not be removed from his office except by an order of the President passed after an address by each House of the Parliament supported by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of the House present and voting has been presented to the President in the same session for such removal on the ground of proved misbehaviour or incapacity".

13. The First President of Independent India hailed from-

- (a) U.P.
- (b) Andhra Pradesh
- (c) Bihar
- (d) Tamil Nadu

41st B.P.S.C. (Pre) 2001

Ans. (c)

The First President of Independent India was Dr. Rajendra Prasad, who hailed from Bihar.

14. The first President of India Rajendra Prasad belonged to which State?

- (a) Bihar
- (b) Haryana
- (c) Delhi
- (d) Uttar Pradesh
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (a)

Dr. Rajendra Prasad was born in a remote village of Siwan district of Bihar on 3rd December, 1884.

15. Who was among following to receive first Bharat Ratna ?

- (a) Rajendra Prasad
- (b) Jawahar Lal Nehru
- (c) Lal Bahadur Shastri
- (d) S. Radhakrishnan
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re-Exam), 2020

Ans. (d)

'Bharat Ratna', the highest Civilian Award of the country, was instituted in the year 1954. Chakravarti Rajagopalachari, Dr. Sarvapalli Radha Krishnan and C.V. Raman were awarded Bharat Ratna in 1954. Thus, option (d) is the correct answer.

16. Which of the following statements is not correct?

- (a) To hold the office of President Candidate should have a minimum age of 35 years.
- (b) Vice-President is Chairman of Rajya Sabha
- (c) Vice-President is appointed by the President of India
- (d) First President of India was Dr. Rajendra Prasad.

38th B.P.S.C. (Pre) 1992

Ans. (c)

According to Article 66, the Vice-President is elected by the members of Parliament by the Proportional Representation System and Single Transferable Vote System. All the other three statements are true.

17. What is the sequence number of Ms. Pratibha Patil as the President of the Republic of India?

- (a) 10th
- (b) 11th
- (c) 12th
- (d) 13th

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (c)

Pratibha Devi Singh Patil (25 July 2007 to 25 July 2012) took oath as the 12th President of India on 25 July 2007. She was the first women President of India. Currently, Draupadi Murmu is the President of India.

18. A Bill presented in Parliament becomes an Act after –

- (a) It is passed by both the Houses.
- (b) The President has given his Assent.
- (c) The Prime Minister has signed it.
- (d) The Supreme Court has declared it to be within the competence of the Union-Parliament.

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (b)

A Bill presented and passed by the Parliament becomes an Act after the assent of the President.

19. Who among the following had been the first unopposed and unanimously elected President in India?

- (a) Neelam Sanjeeva Reddy
- (b) Dr. Radha Krishnan
- (c) Dr. Rajendra Prasad
- (d) More than one of the above
- (e) None of the above

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Ans. (a)

Neelam Sanjiva Reddy served as the sixth President of India from July 25, 1977, to July 25, 1982. Notably, he was the first person to be elected to this high office unopposed. His presidency was marked by his commitment to the values enshrined in the Indian Constitution and his dedication to national unity.

The Vice-President

1. Who is the Chairman of Rajya Sabha?

- (a) The President
- (b) The Vice-President
- (c) The Prime Minister
- (d) The Speaker of Lok Sabha

45th B.P.S.C. (Pre) 2001

Ans. (b)

Rajya Sabha is presided over by Vice-President, but he is not the member of the Upper House.

2. Who is the Ex-Officio Chairman of the Rajya Sabha?

- (a) The President
- (b) The Vice President
- (c) The Prime Minister
- (d) None of the above
- (e) None of the above / More than one of the above

63rd B. P.S.C. (Pre) 2017

Ans. (b)

Rajya Sabha is presided over by Vice-President, but he is not the member of the Upper House.

3. Electoral College for the 16th Vice Presidential Election of India for 2022 consists of how many members?

- (a) 798
- (b) 788
- (c) 545
- (d) 250
- (e) None of the above/More than one of the

67th B.P.S.C. (Re-Exam) (Pre)-2021

Ans. (b)

Members included in the Electoral committee for the 16th Vice Presidential Election:

- 233 elected members of Rajya Sabha
- 12 nominated members of Rajya Sabha
- 543 elected members of the Lok Sabha
- The total number of members included in the electoral committee formed by combining both the house were 788.

4. The serial number of Mr. Mohammad Ansari as Vice-President of India is:

- (a) 10th
- (b) 11th
- (c) 12th
- (d) 13th

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (c)

Mohammad Hamid Ansari was the 12th Vice-President of India, and entered the office in 2007. In July 2012 Mohammad Hamid Ansari was re-elected. The list of Vice-Presidents of India is given below.

1. Sarvepalli Radhakrishnan	-	1952- 1962
2. Zakir Hussain	-	1962- 1967
3. V.V. Giri	-	1967- 1969
4. Gopal Swarup Pathak	-	1969- 1974
5. B.D. Jatti	-	1974- 1979
6. M. Hidayatullah	-	1979- 1984
7. R. Venkataraman	-	1984- 1987
8. Shankar Dayal Sharma	-	1987- 1992
9. K.R. Narayanan	-	1992- 1997
10. Krishna Kant	-	1997- 2002
11. Bhairon Singh Shekhawat	-	2002- 2007
12. Mohammad Hamid Ansari	-	2007- 2017
13. M. Venkaiah Naidu	-	2017- 2022
14. Jagdeep Dhankhar	-	2022- Incumbent

The Council of Ministers

1. The Council of Ministers in a State is collectively responsible to

- (a) the Legislative Assembly
- (b) the Chief Minister
- (c) the Governor
- (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (a)

Article 164(1) of the Indian Constitution provides for the Council of Ministers. According to this Article—The Chief Minister shall be appointed by the Governor and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister, and the Ministers shall hold office at the pleasure of the Governor. Article 164(2) the Council of Ministers shall be collectively responsible to the Legislative Assembly of the State. Article 164(3) before a Minister enters upon his office, the Governor shall administer to him the oaths of office and secrecy according to the forms set out for the purpose in the Third Schedule.

2. The Prime Minister of India is the head of the –

- (a) State Government
- (b) Central Government
- (c) Both State and Central Governments
- (d) None of them

47th B.P.S.C. (Pre) 2005

Ans. (b)

According to **Article 74(1)**, there shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President. The Prime Minister of India is Head of the Government while the President of India is Head of the State.

3. Prime Minister of India is generally-

- (a) Not a member of Parliament
- (b) Member of Lok Sabha
- (c) Member of Rajya Sabha
- (d) Member of both the Houses

47th B.P.S.C. (Pre) 2005

Ans. (b)

The Prime Minister of India is generally a member of Lok Sabha, but this is not compulsory or restricted. He can be a member of Rajya Sabha. Indira Gandhi was the first PM from Rajya Sabha at the time of appointment but later became the member of Lok Sabha.

4. Who is the head of the National Defence Committee?

- (a) Home Minister
- (b) Prime Minister
- (c) President
- (d) Vice-President

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (b)

The National Defence Committee is headed by the Prime Minister.

5. The Council of Ministers is responsible to the –

- (a) President
- (b) Prime Minister

(c) Speaker

(d) Parliament

40th B.P.S.C. (Pre) 1995

Ans. (d)

The Council of Ministers is collectively responsible to Lok Sabha. Since the Lok Sabha is not given in the option but lower assembly Lok Sabha represents parliament too, so the answer would be the Parliament.

6. The Prime Minister of India is responsible to

- (a) The Cabinet
- (b) The President
- (c) The Lok Sabha
- (d) The Rajya Sabha
- (e) None of the above / More than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (c)

According to the Article 75 (3) of the Indian Constitution, the Council of Ministers (including Prime Minister) shall be collectively responsible to the House of the People (Lok Sabha).

7. Union Council of Ministers is collectively responsible–

- (a) Prime Minister
- (b) President
- (c) Parliament
- (d) Only to Lok Sabha

41st B.P.S.C. (Pre) 1996

Ans. (d)

According to Article 75(3) of the Constitution, the Council of Ministers shall be collectively responsible to the House of the People.

8. In Indian Polity, the executive is subordinate to the-

- (a) Judiciary
- (b) Legislature
- (c) Election Commission
- (d) Union Public Service Commission

45th B.P.S.C. (Pre) 2001

Ans. (b)

In Indian Polity, the Executive is subordinate to the Legislature. Parliament is the supreme legislative body of the country. The Council of Ministers is collectively responsible to the House of the People (Lok Sabha).

9. The word ‘Mantrimandal’ (Cabinet) is mentioned only once in Constitution, and that is in–

- (a) Article 352
- (b) Article 74
- (c) Article 356
- (d) Article 76

41th B.P.S.C. (Pre) 1996

Ans. (a)

The word "Cabinet" is mentioned in the Constitution of India in Article 352(3) which says "The President shall not issue a Proclamation unless the Union Cabinet communicates to him in writing that such a Proclamation may be issued. It is noteworthy that the word 'Cabinet' has been mentioned two times in this article.

10. Who is the highest Civil Services Officers of the Central Government?

- (a) The Attorney General of India
- (b) The Cabinet Secretary
- (c) The Home Secretary
- (d) The Finance Secretary
- (e) None of the above / More than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (b)

The Council of Ministers seldom meets as a body. It is the Cabinet, an inner body within the Council, which shapes the policies of the Government. Cabinet Ministers hold the charge of key portfolios. There is no bar on the appointment of a person from outside the legislature as a minister, but he cannot continue for more than six months unless he secures a seat in either House of the Parliament in the meantime. A minister, who is a member of one House has the right to speak and to take part in the proceedings of the other House, though he has no right to vote in the house of which he is not a member. The Union Cabinet Secretariat is not operated under the direction of Ministry of Parliamentary Affairs. The Union Cabinet Secretariat is under the supervision of Prime Minister's Office. Its administrative Chief is Cabinet Secretary, who is the Ex-officio Chairman of Civil Services Board. The cabinet secretary is the highest civil services officer of the central government. Hence both the statements are false.

11. Which of the following Constitutional Amendment Acts restricted the size of the Council of Ministers to 15 percent of the total members of the Lok Sabha?

- (a) 95th Constitutional Amendment Act, 2009
- (b) 93rd Constitutional Amendment Act, 2005
- (c) 91st Constitutional Amendment Act, 2003
- (d) 90th Constitutional Amendment Act, 2002
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (c)

91st Constitutional Amendment Act, 2003 says that the total number of Ministers, including Prime Minister in the Council of Ministers, shall not exceed fifteen percent of the total number of members of the Lok Sabha. This provision was added in **Article 75(1A)** through the 91st Constitutional Amendment Act, 2003.

The Attorney-General/Advocate General and the C.A.G.

1. Who advises the Government of India on legal matters?

- (a) Attorney General
- (b) Chief Justice of the Supreme Court
- (c) Chairman, Law Commission
- (d) None of them

49th B.P.S.C. (Pre) 2000

Ans. (a)

According to Article 76 of the Indian Constitution, it shall be the duty of the Attorney General to advise to the Government of India upon legal matters, and to perform such other duties of legal character. The Attorney General is the first law officer of the Government of India. The President shall appoint a person who is qualified to be appointed as a Judge of the Supreme Court to be Attorney General of India.

2. Which officer of the Government of India has the right to take part in the proceedings of Parliament of India even though he is not a member?

- (a) Vice-President
- (b) Attorney-General of India
- (c) Comptroller and Auditor-General
- (d) Election Commissioner
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

The Attorney-General Can participate in the proceedings of any house of Parliament as a non-member. There is also a Vice-president in the given option and he is also not a member of Parliament, so here the Vice-President can also be the answer. However, if the motion to remove the Vice-President from the post of chairman of Rajya Sabha is under consideration in the house, then the Vice-President does not remain the ex-officio chairman of Rajya Sabha at that time. During this time he can be a part of the House and in this context he can speak in the House. If, it is a matter of Participation in the proceedings of both Houses of the Parliament.

3. As a Non-Member who can participate in the proceedings of either House of Parliament.

- (a) Vice-President
- (b) Chief Justice
- (c) Attorney General
- (d) Chief Election Commissioner

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a & c)

See the explanation of the above question.

4. Who advises the State Government on legal matters?
(a) Attorney-General (b) Advocate-General
(c) Solicitor-General (d) Chief Justice of the High Court
45th B.P.S.C. (Pre) 2001

Ans. (b)

It shall be the duty of the Advocate-General to advise the Government of the State upon legal matters [Article 165(2)]. The Governor of each State shall appoint a person who is qualified to be appointed a Judge of a High Court, to be Advocate-General for the State [Article 165(1)]. The Advocate-General shall hold office during the pleasure of the Governor [Article 165 (3)]. He is the first legal advisor of the State Government.

5. The Parliament's expenditure is controlled by the
(a) President
(b) NITI Aayog
(c) Finance Commission
(d) Comptroller and Auditor General
(e) None of the above/More than one of the above
B.P.S.C. CDPO 2018

Ans. (d)

Parliament expenditure is controlled by the Comptroller and Auditor General (CAG) of India. CAG is an authority established by Article 148 of the constitution of India. The CAG of India is the head of the Indian Audit and Accounts department.

Order of Precedence

1. In the Indian Order of Precedence, who amongst the following comes first?
(a) The Chairman of UPSC
(b) The Chief Election Commissioner
(c) The Comptroller and Auditor General
(d) The Chief Justice of High Court
(e) None of the above/More than one of the above
65th B.P.S.C. (Pre) 2019

Ans. (e)

Order of Precedence of the list is given below :

- The Chairman of UPSC - 9A
- Chief Election Commissioner - 9A
- Comptroller and Auditor General - 9A
- The Chief Justice of High Court - 14

It is important to mention here that the Chairman of UPSC, CEC, CAG and Chief Justice of High Court is at the same order of precedence. So, the correct answer will be (e).

The Parliament A. Lok Sabha

1. Lok Sabha can be dissolved before the completion of its term.
(a) At the discretion of the President
(b) At the discretion of the Prime Minister
(c) At the discretion of the speaker of Lok Sabha
(d) By the President on the recommendation of the Prime Minister
42nd BPSC (Pre) 1997-98

Ans. (d)

As per the Article 85 (2) (b), Lok Sabha can be dissolved before the completion of its term. This is done by the president on the recommendation of the Prime Minister (Council of Ministers).

2. What is the minimum age laid down for a person to seek election to the Lok Sabha?
(a) 18 years (b) 21 years
(c) 25 years (d) None of these
45th B.P.S.C. (Pre) 2001

Ans. (c)

According to Article 84 (b), the minimum age for a person seeking election to the Council of States is 30 years and the minimum age to be elected as a member of Lok Sabha is 25 years.

3. What is the minimum age for a Member of the Parliament?
(a) 18 years (b) 21 years
(c) 25 years (d) 30 years
(e) None of the above / more than one of the above
63rd B.P.S.C. (Pre) 2017

Ans. (c)

See the explanation of the above question.

4. In order to be chosen a member of the Lok Sabha, a person must not be less than the age of?
(a) 18 years (b) 21 years
(c) 25 years (d) 30 years
(e) None of the above/ More than one of the above
64th B.P.S.C. (Pre) 2018

Ans. (c)

See the explanation of the above question.

5. Generally how many sessions are there in the Lok Sabha?
(a) 3 (b) 4
(c) 5 (d) 6
(e) None of the above/More than one of the above
67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (a)

Article 85 of the Constitution deals with sessions of parliament, prorogation and dissolution. According to this Article, the President shall from time to time summon each House of Parliament to meet at such time and place as he thinks fit, but six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session. The President may from time to time—
(a) prorogue the Houses or either House;
(b) dissolve the House of the People.

6. A candidate of Lok Sabha Poll loses his security amount if he/she does not get –

- (a) $\frac{1}{3}$ of valid votes (b) $\frac{1}{4}$ of valid votes
(c) $\frac{1}{5}$ valid votes (d) None of the above

40th B.P.S.C. (Pre) 1995

Ans. (d)

Any candidate who fails to secure more than one-sixth ($\frac{1}{6}$) of the valid votes polled in the constituency, loses his security money or deposit.

7. The state-wise allocation of seats in Lok Sabha is based on the 1971 Census. Up to which year does this remain intact?

- (a) 2031 (b) 2026
(c) 2021 (d) 2011

47th B.P.S.C. (Pre) 2005

Ans. (b)

84th Constitutional Amendment Act, 2001 amended to the Article 81(3) Provision, that in place of year 2000 for the purpose of allotment of seats in the House of People to any state 2026 should be substituted and shall not be amended till 2026, and be construed as a reference to the 1971 census for allocation of seats in Lok Sabha.

8. Presently the number of seats of each state in Lok Sabha is allotted on the basis of-

- (a) Census of 1951 (b) Census of 1961
(c) Census of 1971 (d) Census of 1981

42nd B.P.S.C. (Pre) 1998

Ans. (c)

* The first Lok Sabha elections were conducted for 489 seats, out of which Indian National Congress (INC) won 364 seats and emerged as the single largest party.

* Second place was secured by the Communist Party of India with 16 seats.

* It was only in 1969, that a 'leader of opposition' was recognised. Till then the practise was to call the leader of the

party in opposition having the largest number of members as the leader of the opposition **without** having any formal recognition, status or privilege.

*However, in order to get formal recognition, the concerned party must have at least 10% of the total strength of the House i.e. 55 seats in Lok Sabha.

9. Who holds power to appoint the nominees from Anglo-Indian Community in the Lok Sabha?

- (a) Minorities Commission
(b) President of India
(c) Prime Minister
(d) Vice-President

44th B.P.S.C. (Pre) 2000

Ans. (b)

The President holds the power to nominate the Anglo-Indian members in Lok Sabha. According to Article 331, if the President thinks that the Anglo-Indian community is not adequately represented in the Lok Sabha, he could nominate not more than 2 members of that community. The arrangements of nominating representatives of the Anglo-Indian Community in the Lok Sabha have not been extended beyond the stipulated date (25 January, 2020) by 'The Constitution (One Hundred and Fourth Amendment) Act, 2019.

10. The Fifth Schedule deals with the governance and protection of the interests of which specific group of people?

- (a) Scheduled Castes
(b) Religious Minorities
(c) Scheduled Tribes
(d) Linguistic Minorities

69th B.P.S.C. (Pre) 2023

Ans. (c)

The Fifth Schedule of the Constitution deals with the administration and control of Scheduled Areas as well as of Scheduled Tribes residing in any State other than the States of Assam, Meghalaya, Tripura and Mizoram.

11. In which Article of the Constitution of India was the provision for reservation of scheduled castes in the Lok Sabha made?

- (a) Article 330 (b) Article 331
(c) Article 332 (d) Article 333

64th B.P.S.C. (Pre) 2018

Ans. (a)

Article 330 - Reservation of seats for Scheduled Castes and Scheduled Tribes in the House of the People (Lok Sabha).

Article 331 - Representation of Anglo - Indian communities in Lok Sabha. (See the explanation of above question).

Article 332 - Reservation of seats for Scheduled Castes and Scheduled Tribes in the Legislative Assembly of the states.

Article 333 - Representation of Anglo - Indian communities in the Legislative Assembly of the States. (See the explanation of above question).

12. The specifications required for a community to be declared as a Scheduled Tribe are

1. indications of primitive traits
2. distinctive culture
3. shyness of contact with the community at large
4. backwardness and geographical isolation

Which of the above are correct?

- (a) Only 1 and 2 (b) Only 2, 3 and 4
(c) Only 1, 3 and 4 (d) All of the above

69th B.P.S.C. (Pre) 2023

Ans. (d)

The criterion followed for specification of a community, as scheduled tribes are indications of primitive traits, distinctive culture, geographical isolation, shyness of contact with the community at large, and backwardness. This criterion is not spelled out in the Constitution but has become well-established.

13. Prior to the completion of tenure, the Lok Sabha can be dissolved—

- (a) By the will of President
(b) By Speaker
(c) By the President on the recommendation of Council of Ministers
(d) By the President on the recommendation of the Speaker.

40th B.P.S.C. (Pre) 1995

Ans. (c)

According to the Article 85(2)(b), the Lok Sabha may be dissolved before completion of its tenure/period. The President exercises this power on the recommendation of the Prime Minister or Council of Ministers.

14. Session of Lok Sabha is called for at least-

- (a) Once in a year (b) Two times in a year
(c) Three times in a year (d) Four times in a year

42nd B.P.S.C. (Pre) 1997

Ans. (b)

According to Article 85(1), the President shall from time to time summon each House of the Parliament to meet at such time and place as he thinks fit, but six months shall not pass between its last sitting in one session and the date appointed for its first sitting in the next session. This indicates that the session of Lok Sabha is called for at least two times in a year.

15. Which State sends the largest number of members in Lok Sabha?

- (a) Bihar (b) Madhya Pradesh
(c) West Bengal (d) Uttar Pradesh

42nd B.P.S.C. (Pre) 1997

Ans. (d)

Uttar Pradesh sends the largest number of members (80) in Lok Sabha. In the given options the number of members in Lok Sabha is as follows: Bihar-40, Madhya Pradesh-29, West Bengal-42.

16. So long as the representation in Lok Sabha is concerned, which states rank second and third?

- (a) Bihar and Maharashtra
(b) Madhya Pradesh and Tamil Nadu
(c) Madhya Pradesh and Maharashtra
(d) Bihar and Madhya Pradesh

39th B.P.S.C. (Pre) 1994

Ans. (*)

Till the question year i.e. 1994, the maximum number of seats in Lok Sabha was allotted to the State of Bihar among the states given in the options. In the year 2000, three new states were created. Present status of representation in Lok Sabha is given below:

First (Uttar Pradesh)	-	80 seats
Second (Maharashtra)	-	48 seats
Third (West Bengal)	-	42 seats
Fourth (Bihar)	-	40 seats
Fifth (Tamil Nadu)	-	39 seats
Sixth (Madhya Pradesh)	-	29 seats

17. First General Election of Lok Sabha was held in-

- (a) 1949 (b) 1952
(c) 1950 (d) 1954

42nd B.P.S.C. (Pre) 1997

Ans. (b)

The first General Election of Lok Sabha was held between 25 October 1951 and 21 February 1952. The Election was held for total of 489 seats. The first session of the first Lok Sabha commenced on 13 May, 1952.

18. 9th Lok Sabha was dissolved on –

- (a) 13 March, 1991
- (b) June, 1996
- (c) April, 1997
- (d) February, 1998

42nd B.P.S.C. (Pre) 1997

Ans. (a)

9th Lok Sabha was constituted on 2 December, 1989 and dissolved on 13 March, 1991.

19. The election for 12th Lok Sabha of India was held in-

- (a) April, 1996
- (b) June, 1996
- (c) April, 1997
- (d) February, 1998

42nd B.P.S.C. (Pre) 1997

Ans. (d)

The elections for 12th Lok Sabha were held in February, 1998 and 12th Lok Sabha was constituted on 10th March, 1998 and was dissolved on 26th April, 1999.

20. Who is the leader of the Lok Sabha?

- (a) President
- (b) Prime Minister
- (c) Speaker
- (d) None of the above

42nd B.P.S.C. (Pre) 1995

Ans. (b)

According to Article 75(1), the Prime Minister shall be appointed by the President. He is the head of Council of Ministers and the leader of majority party in Lok Sabha. If Prime Minister is not a member of the Lower House of Parliament, then he can nominate another minister as the leader of that House. For example, during 14th Lok Sabha, Manmohan Singh, then a member of Rajya Sabha was the Prime Minister of India, but leader of the House (Lok Sabha) was Pranab Mukherjee.

21. A seat of an M.P. can be declared vacant if he absents himself from the house for a continuous period of –

- (a) Six months
- (b) Two months
- (c) Three months
- (d) One year
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

According to Article 101(4) of the Constitution, "If for a period of sixty days a member of either House of Parliament is without permission of the House absent from all meetings thereof, the House may declare his seat vacant: Provided that in computing the said period of sixty days no account shall be taken of any period during which the House is prorogued or is adjourned for more than four consecutive days.

22. Speaker of the Lok Sabha is elected by –

- (a) All members of parliament
- (b) Public directly
- (c) All members of Lok Sabha
- (d) The members of parties in majority

39th B.P.S.C. (Pre) 1994

Ans. (c)

The Speaker of Lok Sabha is chosen by all the members of Lok Sabha.

23. Present Lok Sabha Deputy Speaker is -

- (a) Mr. P.M. Sayeed
- (b) Mrs. Nazma Heptulla
- (c) Mr. G.M.C. Balayogi
- (d) None of these

43th B.P.S.C. (Pre) 1999

Ans. (a)

At the time of question (in 1999) P.M. Sayeed was the Deputy Speaker of the House. Charanjit Singh Atwal was the Deputy Speaker of 14th Lok Sabha, and Karia Munda was the Deputy Speaker of 15th Lok Sabha. M. Thambidurai was the Deputy Speaker of the 16th Lok Sabha. Currently the post of the Deputy speaker of Lok Sabha is vacant from 2019.

24. The Attorney General of India is appointed by –

- (a) the Law Minister
- (b) the President of India
- (c) the Speaker of the Lok Sabha
- (d) the Prime Minister
- (e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (b)

The Constitution (Article-76) has provided for the office of Attorney General for India. He is the highest law officer in the Country. He is appointed by the President and holds office as per the pleasure of President. This means that he has no specific tenure and they can be removed by the President any time.

B. Rajya Sabha

1. The Rajya Sabha consists of-

- (a) 280 members of which 20 members are nominated by the President of India.
- (b) 275 members of which 18 members are nominated by the President of India.
- (c) 250 members of which 12 members are nominated by the President of India.
- (d) 252 members of which 12 members are nominated by the President of India.

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (c)

Article 80 of the Constitution provides provisions related the members of Rajya Sabha. According to this Article, the Council of States shall consist of twelve members to be nominated by the President by the provisions of clause and not more than two hundred and thirty eight representatives of the States and the Union Territories.

2. The Representation of States in Council of States is based on –

- (a) Equal for all States (b) Ratio of their Population
(c) Ratio of their Area (d) Ratio of their Revenue

38th B.P.S.C. (Pre) 1992

Ans. (b)

The representation of States in Council of States is based on the ratio of State's population. Number of seats or representatives of a State in Rajya Sabha has been determined by the Fourth Schedule of the Constitution. The fourth schedule of the Indian Constitution contains provisions as to the allocation of seats in the Council of States.

3. Member of Rajya Sabha is elected-

- (a) For four years (b) For five years
(c) For six years (d) For life long

42nd B.P.S.C. (Pre) 1997

Ans. (c)

According to Section 83(1), the Council of States is the Upper House or Permanent House of the Parliament. It is not subject to dissolution but, as nearly as possible one-third of the members thereof shall retire as soon as may be on the expiration of every second year. The tenure of the members of the Council of States is 6 years.

4. Rajya Sabha is called Permanent House because –

- (a) All members are lifelong
(b) It cannot be dissolved
(c) Some members retire after every two years
(d) Both (b) and (c) are true

41st B.P.S.C. (Pre) 1996

Ans. (b)

See the explanation of the above question.

5. According to our Constitution, the Rajya-Sabha -

- (a) is dissolved once in two years.
(b) is dissolved every five years.
(c) is dissolved every six years.
(d) is not subject to dissolution.

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (d)

See the explanation of the above question.

6. Right to dissolve the Rajya Sabha is vested in –

- (a) President (b) Vice-President
(c) Supreme Court (d) None of the above

39th B.P.S.C. (Pre) 1995

Ans. (d)

See the explanation of the above question.

7. The number of members nominated by the President in Rajya Sabha is–

- (a) 10 (b) 15
(c) 12 (d) 20

39th B.P.S.C. (Pre) 1996

Ans. (c)

According to Article 80, the President may nominate 12 persons in Rajya Sabha belonging to the area of Literature, Science, Art and Social Services.

8. In which House is the presiding officer not a member of that House?

- (a) Rajya Sabha (b) Lok Sabha
(c) Vidhan Sabha (d) Vidhan Parishad

48th to 52nd B.P.S.C. (Pre) 2008

42nd B.P.S.C. (Pre) 1997

Ans. (a)

The presiding officer of Rajya Sabha i.e. Vice-President is not a member of the House. He is elected by the member of an electoral college consisting of the member of both the Houses of Parliament. He is a Chairman of Rajya Sabha.

9. The representation in the Rajya Sabha includes

- (a) members nominated by the President of India
(b) members directly elected by citizens
(c) members indirectly elected by citizens through their representatives
(d) More than one of the above
(e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (d)

The Rajya Sabha should consist of not more than 250 members - 238 members representing the States and Union Territories, and 12 members nominated by the President. Rajya Sabha is a permanent body and is not subject to dissolution. However, one third of the members retire every second year, and are replaced by newly elected members. Each member is elected for a term of six years. The Vice President of India is the ex-officio Chairman of Rajya Sabha. The House also elects a Deputy Chairman from among its members. Besides, there is also a panel of "Vice Chairmen" in the Rajya Sabha. The senior most minister, who is a member of Rajya Sabha, is appointed by the Prime Minister as Leader of the House.

C. The Parliament (Miscellaneous)

1. Under which Article(s), the Speaker can allow any member of the House to speak in his/her mother tongue?

- (a) Article 110 (1) (b) Article 122 (2)
(c) Article 120 (1) (d) Both (A) and (B)

69th B.P.S.C. (Pre) 2023

Ans. (c)

Article 120, Constitution of India 1950

(1) Notwithstanding anything in Part XVII, but subject to the provisions of article 348, business in Parliament shall be transacted in Hindi or in English:

Provided that the Chairman of the Council of States or Speaker of the House of the People, or person acting as such, as the case may be, may permit any member who cannot adequately express himself in Hindi or in English to address the House in his mother tongue.

2. What should be the interval between the two consecutive sessions of Parliament?

- (a) Four Month (b) Six Month
(c) 1 Year (d) Fixed by the President

39th B.P.S.C. (Pre) 1994

Ans. (b)

Article 85(1) imposes a duty upon the President to summon each House of Parliament at such interval that six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session. So the Parliament must meet at least twice in a year.

3. Zero Hour in political jargon refers to-

- (a) Day when no business in Parliament is done
(b) Suspended motion
(c) Adjourned time
(d) Question-answer session

45th B.P.S.C. (Pre) 2001

Ans. (d)

During zero hour the members can raise matters of importance, especially those that cannot be delayed. It refers to question and answer session.

4. Joint Session of both the Houses of Parliament is concerned

1. For the election of the President of India
2. For the election of the vice-President of India
3. To pass the Bill relating to the amendment of Constitution
4. To discuss and pass such a Bill where both Houses have different opinion

Select your answer from the following code –

- (a) 1 and 4 (b) 3 and 4
(c) 1 and 2 (d) only 4

40th B.P.S.C. (Pre) 1995

Ans. (d)

According to Article 108 of the Constitution, a joint session of both the Houses is called to discuss on such a Bill on which both the Houses have a different opinion. Joint Session is presided over by the Speaker of the Lok Sabha.

5. Money Bill can be presented -

- (a) Only in the Lok Sabha
(b) Only in the Rajya Sabha
(c) In both the Houses
(d) In joint meeting of both the Houses
(e) None of the above / more than one of the above

63rd B. P.S.C. (Pre) 2017

Ans. (a)

A Money Bill can be introduced in Lok Sabha only. Rajya Sabha have very limited power in this regard. Rajya Sabha can delay this for a period not exceeding 14 days.

6. Of the following statements, which one is not correct?

- (a) The Rajya Sabha is powerless in money matters.
(b) Money Bill is introduced in the Rajya Sabha.
(c) The Rajya Sabha has to pass the Money Bill within 14 days after it has been passed by the Lok Sabha.
(d) The Rajya Sabha may pass or return the Money Bill with some recommendations to the Lok Sabha.

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (b)

It has been laid down in Article 109 (1) of the Constitution of India that a Money Bill shall not be introduced in the Rajya Sabha. Article 109(2) lays down that, after a Money Bill has been passed by the Lok Sabha, it shall be transferred to the Rajya Sabha for its recommendations. And the Council of States shall within a period of fourteen days from the date of its receipt of the Bill return the Bill to the house of the people with its recommendations and the House of the people may thereupon either accept or reject all or any of the recommendations of the Council of the States.

7. What constitutes the definition of money bill under article 110 of the Indian Constitution?

- (a) The imposition, abolition, alteration or regulation of any tax

- (b) The regulation of borrowings of money
- (c) The appropriation of money out of the consolidated fund of India
- (d) Declaration of any expenditure to be charged on the consolidated fund of India
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (e)

According to the Article 110 of the Constitution of India, a Bill shall be deemed to be a Money Bill if it contains only provisions dealing with all or any of the following matters, namely:

- (a) The imposition, abolition, remission, alteration or regulation of any tax;
- (b) The regulation of borrowing of money or the giving of any guarantee by the GOI or the amendment of the law with respect to any financial obligations undertaken or to be undertaken by the Government of India;
- (c) The custody of the Consolidated Fund or the Contingency Fund of India the payment of moneys into or the withdrawal of moneys from any such Fund;
- (d) The appropriation of money out of the consolidated fund of India;
- (e) The declaration of any expenditure to the expenditure charged on the consolidated fund of India or the increasing of the amount of any such expenditure;
- (f) The receipt of money on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money or the audit of the accounts of the Union or of a state; or
- (b) Any matter incidental to any of the matters specified in sub-clause (a) to (f).

Thus all the options are correct. So the correct answer is an option (e).

8. Annual Financial Statements and Finance Bill are presented before the Parliament under the Constitutional Articles _____ respectively.

- (a) 110 and 112
- (b) 110 and 111
- (c) 112 and 111
- (d) 112 and 110
- (e) None of the above / More than one of the above

B.P.S.C. Project Manager Prelims 2021

Ans. (d)

Annual Financial Statements and Finance Bill are presented before the parliament. It comes under the following Article of the Constitution of India–

- Annual Financial Statement – Article 112
- Finance Bill – Article 110

9. Vote on Account is meant for -

- (a) Vote on the report of CAG
- (b) To meet unforeseen expenditure
- (c) Appropriating funds pending passing of budget
- (d) Budget
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (c)

Vote on-Account is presented when Government has no time to present full Budget or elections are around the corner. When the Government does not have enough time to vote for a full budget before the commencement of the new financial year, a special provision is made to make sure that there is enough money at the disposal of the Government to allow it to run the administration of the country. This special provision is known as Vote-on-Account. Article 116(1)(a) of the Constitution has provision of vote-on-Account.

10. What is the object of "Cut Motion"?

- (a) To put check on the policies of the Government
- (b) To stop the functioning of ruling party
- (c) To move a proposal to reduce expenditure in the Budget proposals
- (d) Rejection of complete financial dealings of the Government
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (c)

The motion to reduce the amount of demands for grants are called "Cut Motion". The object of a cut motion is to draw the attention of the House to the matter specified therein.

11. The Public Accounts Committee submits its reports to-

- (a) The Comptroller and Auditor General
- (b) The Speaker of the Lok Sabha
- (c) The Minister of Parliamentary Affairs
- (d) The President of India

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (b)

The Public Accounts Committee submits its report to the speaker of the Lok Sabha.

12. The Split system in the Indian administration relates to

- (a) Audit/Accounts
- (b) Union/States
- (c) Policy/Implementation
- (d) All India Service/Central Service

- (e) None of the above / More than one of the above.

67th B.P.S.C. (Pre) 2021

Ans. (c)

The Split system in Indian Administration deals with policy-making and implementation. In this, the secretariat makes the policy while the implementation is done by the concerned bodies/agency.

13. Which of the following is a parliamentary committee relating to delegation of power to make rules and regulations of the executive?

- (a) Committee on Executive legislation
- (b) Committee on subordinate legislation
- (c) Committee on Administrative legislation
- (d) Committee on Delegated legislation
- (e) None of the above/more than one of the above

67th B.P.S.C. (Pre) 2021

Ans. (b)

The committee on subordinate legislation of parliament is a 15 member standing committee. This committee reports to the parliament on the legislation delegated to the executive.

14. By passing, 'Triple Talaq Law' recently, the Parliament of India endorsed which year's ruling of the Supreme Court of India that had made Triple Talaq (Talaq-e-Biddat) as unconstitutional?

- (a) 2011
- (b) 2013
- (c) 2015
- (d) 2017
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (d)

The Supreme Court in Shayara Bano case (2017) had declared the Practice of Triple Talaq (Talaq-e-biddat) as unconstitutional. It is important to mention here that the Triple Talaq was held to violated of Article in (the right to equality).

The Supreme Court

1. Consider the following statements about the collegium system :

- 1. The Supreme Court collegium is a five-member body, which is headed by the incumbent Chief Justice of India (CJI) and comprises four other seniormost Judges of the Court at that time.
- 2. The Parliament by law has evolved the collegium system.
- 3. The Judges of the Supreme Court and High Courts are appointed only through the collegium system.

4. The collegium system was introduced in the year 1993 by Justice P. N. Bhagwati in the landmark First Judges Case.

Which of the above statements is/are correct?

- (a) Only 1
- (b) 1 and 2
- (c) 3 and 4
- (d) 1 and 3

69th B.P.S.C. (Pre) 2023

Ans. (d)

The Chief Justice of India is one of the five senior judges that make up the Supreme Court's Collegium. They will take into consideration the promotion of judges of the Supreme Court, as well as the promotion of judges of high courts to the position of chief justice. When there is a disagreement, the majority opinion will take precedence. The collegium approach emerged because the Indian Constitution requires consultation with the Chief Justice of India before any appointment to the judiciary. Significantly, Parliament did not establish this system. Initially, After the Second Judges Case the collegium system comprised the Chief Justice of India and the two senior-most judges of the Supreme Court. In this case Hon'ble Supreme Court of India ruled that "consultation" means concurrence, binding the President to the Chief Justice's consultations.

2. The Supreme Court is a:

- (a) Federal court
- (b) Protector of human rights
- (c) Final interpreter of the Constitution
- (d) Civil court
- (e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (c)

The Supreme Court of India is the final interpreter of the Constitution. It is also called the guardian of the Constitution. Article 124 of the Constitution provides establishment and Constitution of Supreme Court. The Supreme Court consists of a Chief Justice and other judges as may be prescribed by law from time to time.

3. Which of the following is concerned with the Supreme Court of India?

- (a) Collegium system
- (b) Appellate jurisdiction
- (c) Original jurisdiction
- (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (d)

As for the Supreme Court is concerned Collegium system, Appellate jurisdiction and original jurisdiction are related to the apex court. Significantly, collegiums system is the system of appointment and transfer of judges that has evolved through judgments of the Supreme Court, and not by an Act of Parliament or by a provision of the Constitution. Except this, the Supreme Court is the highest Court of Appeal of all courts. It is important to mention here that as a Federal court, the Supreme Court decides disputes between different units of the Indian Federation. Option (d) is correct answer.

4. In which case(s) did the Supreme Court of India give for the first time the doctrine of 'basic structure' of the Constitution?

- (a) Golaknath vs. State of Punjab
- (b) Kesavananda Bharati vs. State of Kerala
- (c) Minerva Mills vs. Union of India
- (d) Both (A) and (B)

69th B.P.S.C. (Pre) 2023

Ans. (b)

The Supreme Court of India examined the concept of the "Basic structure" of the constitution for the first time in Kesavananda Bharti vs. State of Kerala in 1973. Significantly, the Supreme Court reversed its decision in the Golak Nath case in this instance. It declared that Parliament has the authority to restrict or eliminate any of the Fundamental Rights and confirmed the legality of the 24th Constitution Amendment Act. It also established a new theory regarding the "basic structure" or "basic features" of the Constitution. It decided that Parliament cannot change the "basic structure" of the Constitution using its constituent power under Article 368. This implies that a Fundamental Right that is a component of the Constitution's "basic structure" cannot be restricted or eliminated by the Parliament.

5. The sanctioned strength of Supreme Court of India is—

- (a) 24
- (b) 20
- (c) 18
- (d) 9

38th B.P.S.C. (Pre) 1992

Ans. (*)

The Supreme Court of India was established according to Part V, Chapter IV, Article 124 of the Constitution of India. SC is the highest judicial forum and the final Court of Appeal. Establishment of the Supreme Court of India, its composition and jurisdiction has been laid down in Article 124 to 147 of the Indian Constitution. Initially, during the 1950s the Supreme

Court consisted of a Chief Justice and seven Judges. In 1956, the number rose to eleven, and it kept rising to fourteen, eighteen, twenty-six and thirty-one including the Chief Justice in 1960, 1978, 1986 and 2008 respectively. It is noteworthy that the Supreme Court (Number of Judges) Amendment Act, 2019 has increased the number of judges in Supreme Court from 31 (30+1) to 34 (33+1). Currently there are total 32 judges in the Supreme Court including Chief Justice.

6. Judicial process in India is based on -

- (a) The Constitution
- (b) The due process of routine law
- (c) Conventions
- (d) The procedure established by law
- (e) None of the above/more than one of the above

67th B.P.S.C. (Pre) 2021

Ans. (e)

The correct answer is more than one of the above significantly, Judiciary is a branch of the government. India has a single integrated judicial system. Chapter IV under Part V of the Constitution provides about Union Judiciary. In the Indian Judicial system there are various judicial principles which developed as per the interpretation held by the judiciary. So one can say that the proceeding of judiciary is based on various kind of constitutional and legal perspective.

7. Supreme Court in India was established-

- (a) By an Act of Parliament in 1950
- (b) Under Indian Independence Act, 1947
- (c) Under Indian Government Act, 1953
- (d) By the Indian Constitution

42th B.P.S.C. (Pre) 1997

Ans. (d)

Supreme Court of India came into existence on 26th January, 1950. The Supreme Court of India was inaugurated on 28th January, 1950. It succeeded the Federal court of India established under the Government of India Act, 1935.

8. Of the following statements, which one is not correct?

- (a) Supreme Court was constituted in 1950.
- (b) Supreme Court is the highest Court of appeal in the country.
- (c) Supreme Court can hear from any High Court/ Tribunals except Court-martial.
- (d) Supreme Court can hear from any High Court/ Tribunals as well as from Court-martial.

53th to 55th B.P.S.C. (Pre) 2011

Ans. (c)

Armed Forces Tribunal Act, 2007 provides that the Court Martial can be appealed in the Supreme Court.

9. The power to increase the number of Judges in the Supreme Court of India is vested in –

- (a) The President of India
- (b) The Parliament
- (c) The Chief Justice of India
- (d) The Law Commission

44th B.P.S.C. (Pre) 2000

Ans. (b)

Article 124 of the Constitution provides for the formation of the Supreme Court. The power to increase the number of Judges in the Supreme Court of India is vested in the Parliament.

10. Who appoints the Judges of the Supreme Court of India?

- (a) The Prime Minister (b) The President
- (c) The Chief Justice of India (d) The Ombudsman
- (e) None of the above / more than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (b)

According to Article 124 (2) (a) of the Indian Constitution, a Judge may, by writing under his hand addressed to the President, resign his office. Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal and shall hold office until he attains the age of sixty-five years.

11. What is the retirement age of the Judges of the Supreme Court ?

- (a) 60 years (b) 62 years
- (c) 65 years (d) 70 years
- (e) None of the above / more than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (c)

See the explanation of the above question.

12. A Judge of the Supreme Court may resign his office by writing to ?

- (a) The President
- (b) The Prime Minister
- (c) The Law Minister
- (d) The Attorney General of India
- (e) None of the above/More than one of the above

64th B.P.C.S. (Pre) 2018

Ans. (a)

See the explanation of the above question.

13. The concept of Public Interest Litigation originated in

- (a) the United Kingdom (b) the USSR
- (c) Australia (d) the United States
- (e) None of the above/More than one of the above

B.P.S.C. CDPO 2018

Ans. (d)

The concept of Public Interest Litigation (PIL) has its origin in the United States of America in the year 1960s. According to the Supreme Court, PIL means a legal action started in a Court of Law for the enforcement of Public interest where the public or a particular class of the Public have some interest that affects their legal right or liabilities.

The Governor

1. Who is the Constitutional Head of the State Governments?

- (a) Chief Minister (b) Governor
- (c) Speaker (d) High Court Judge

53rd to 55th B.P.S.C. (Pre) 2011

45th B.P.S.C. (Pre) 2001

Ans. (b)

Governor of a state can act according to his discretion in following situations

- (i) To ask the Government to prove majority in the State Legislative Assembly.
- (ii) To terminate a Chief Minister who has lost confidence in the Assembly.
- (iii) To provide or withhold assent to a Bill or reserve a Bill for the consideration of the President. (Art. 200)
- (iv) To return a Bill to the Legislative Assembly for reconsideration (Provision of article 200)

Besides, the Governor uses his discretion while imposing President's rule in the State and dissolving the State Legislature. The Governor however has not been authorized to consult the High Court. Therefore option (b) is correct.

2. Who appoints the Governor of Jammu & Kashmir?

- (a) The Chief Minister of Jammu & Kashmir
- (b) The Chief Justice of High Court of Jammu & Kashmir
- (c) The Prime Minister of India
- (d) The President of India

47th B.P.S.C. (Pre) 2002

Ans. (d)

Under Part XXI of the Constitution of India, which deals with “Temporary, Transitional and Special Provisions,” the State of Jammu and Kashmir has been accorded special status under **Article 370**. Prior to 1965, head of the Executive was elected by the Legislative Assembly of Jammu and Kashmir but by an amendment to the State Constitution, this dissimilarity was removed. The Executive head was known as Governor in place of Sadar-e-Riyasat and was appointed by the President of India. Now, after its reorganisation in 2019, the two newly created Union territories are administered by the President through Lieutenant Governors appointed by him.

3. The Governor of a State is appointed by -

- (a) The Prime Minister
- (b) The Chief Justice of India
- (c) The President
- (d) The Chief Justice of the High Court
- (e) None of the above / more than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (c)

The Governor is the Executive head of a State appointed by the President. According to Article 157, any person who is a citizen of India and has completed the age of 35 years shall be eligible for appointment as a Governor of a State. Citizenship by birth is not a requirement. According to Article 158, the Governor shall not be a member of either House. Thus it is not necessary that the Governor must have the eligibility to be a Member of Lok Sabha. The Seventh Amendment Act, 1956 provided that a person is eligible to be appointed as Governor for two or more States.

4. Consider the following pairs of the Governors and the Indian States :

State	Governor
1. Rajasthan	Kalraj Mishra
2. Uttar Pradesh	Anandiben Patel
3. West Bengal	Satya Pal Malik
4. Gujarat	Phagu Chauhan

Which of the pairs given above is/are correctly matched?

- (a) 1 and 2 only
- (b) 3 and 4 only
- (c) 3 only
- (d) 1, 3 and 4 only
- (e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre)-2021

Ans. (a)

The governor of West Bengal is Dr. C.V. Ananda Bose while the Governor of Gujarat is Acharya Devvrat The remaining pairs are correctly matched.

The State Legislature

1. The Governor of Uttar Pradesh directs the speaker of the legislative assembly to hold its session. In doing so he was exercising the rights which are vested in his office.

- (a) by Article 172
- (b) by Article 174
- (c) by Article 175
- (d) by Article 176

40th B.P.S.C. (Pre) 1995

Ans. (c)

According to the Article 175 (2) of the Constitution of India : The Governor may send messages to the house of the legislative of the state, whether with respect to a Bill then pending in the legislative or otherwise, and a house to which any message is so that sent shall with all convenient dispatch consider any matter required by the message to be taken into consideration.

2. As per Indian Constitution, Legislature of States consists

- (1) Legislative Council and Governor
- (2) Legislative Assembly and Legislative Council
- (3) Legislative Assembly and Governor
- (4) Governor, Legislative Assembly and Legislative Council where it exists

Select your answer out of the following codes-

- (a) Only 3
- (b) 2 and 3
- (c) 3 and 4
- (d) Only 4

41st B.P.S.C. (Pre) 1996

Ans. (c)

According to Article 168, the Legislature of a State consists of Governor, Legislative Assembly, and Legislative Council. Currently, Andhra Pradesh, Bihar, Maharashtra, Karnataka, Telangana and Uttar Pradesh have bicameral Legislature. Therefore option (3) is correct with respect to States which do not have a legislative council, whereas option (4) is correct with respect to the states which have Legislative Council.

3. Which is the Upper Chamber of State Legislatures in India?

- (a) Legislative Council
- (b) Legislative Assembly
- (c) Governor's Office
- (d) None of these

44th B.P.S.C. (Pre) 2000

Ans. (a)

According to **Article 168(2)**, where there are two Houses of the Legislature of a State, one shall be known as the Legislative Council and the other as the Legislative Assembly, and where there is only one House, it shall be known as the Legislative Assembly. In the case of two Houses, the Legislative Council would be the Upper House and the Legislative Assembly would be the Lower House.

4. In any State of India, Legislative Council can be created or can be abolished by –

- (a) The President on the recommendation of the Governor of the State
- (b) The Parliament
- (c) The Parliament as per Resolution passed by the Legislative Assembly of the State
- (d) The Governor on the recommendation of the Council of Ministers

40th B.P.S.C. (Pre) 1995

Ans. (c)

Just like the Council of States the Legislative Council is also a permanent body, hence is not subjected to dissolution. However unlike the Council of States, Article 169 of the Constitution of India has vested the power in Parliament for Abolition or creation of Legislative councils in states, if the Legislative Assembly of the state passes a resolution to that effect by a majority of the total membership of the Assembly and by a majority of not less than two third of the members of the Assembly present and voting.

5. Legislative Council exists in which of the following states?

- (1) Kerala
- (2) Himachal Pradesh
- (3) Delhi
- (4) Bihar

Select your answer from the following codes–

- (a) 1 and 2
- (b) 1 and 3
- (c) 2 and 3
- (d) only 4

40th B.P.S.C. (Pre) 1995

Ans. (d)

In the given options. Only Bihar has bicameral legislature.

6. Which of the following Articles of Indian Constitution consists the provision of the election of Legislative Assemblies of States–

- (a) Article 170
- (b) Article 176
- (c) Article 178
- (d) None of the above

40th B.P.S.C. (Pre) 1995

Ans. (a)

According to Article 170(1), subject to the provisions of Article 333, the Legislative Assembly of each State shall consist of not more than five hundred, and not less than sixty members chosen by direct election from territorial constituencies in the State. Article 176 is related to special address by the Governor and Article 178 provisions for the Speaker and Deputy Speaker of the Legislative Assembly.

7. Which one of the following Indian States has the largest number of members in its State Legislature?

- (a) Arunachal Pradesh
- (b) Himachal Pradesh
- (c) Manipur
- (d) Meghalaya
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (b)

States	Seats in Legislative Assembly
Arunachal Pradesh	60
Himachal Pradesh	68
Manipur	60
Meghalaya	60
So, correct answer will be (b).	

8. If the Speaker of Legislative Assembly of a State wants to resign, he will give his resignation to –

- (a) Chief Minister
- (b) Governor
- (c) Deputy Speaker
- (d) President of India

40th B.P.S.C. (Pre) 1995

Ans. (c)

According to Article 179(b), if the Speaker of Legislative Assembly of a State wants to resign, he/she will give his resignation to the Deputy Speaker of that State's Legislative Assembly.

9. The members of a State Legislative Council are not chosen by which of the following categories of persons?

- (a) Members of the local bodies/panchayats
- (b) Teachers
- (c) Graduates
- (d) Industrialists
- (e) None of the above/More than one of the above.

67th B.P.S.C. (Pre) 2021

Ans. (d)

Composition of the legislative council is mentioned under the provisions of Article 171 (3) of the constitution. In which one third shall be elected by local bodies, one-twelfth shall be elected by electorates consisting of persons residing in the slate who have been for at least three years graduates of

any university in the territory of India. One-twelfth shall be elected by electorates consisting of persons who have been for at least three years engaged in teaching in such educational institution within the state. One-third shall be elected by the member of legislative assembly of the state, the remainder shall be nominated by the Governor in accordance with the provisions prescribed in the constitution.

The High Court

1. **The authority to determine the number of Judges in a High Court rests with which of the following entities?**
 - (a) The President
 - (b) The Chief Minister of the State
 - (c) The Prime Minister
 - (d) The Parliament

69th B.P.S.C. (Pre) 2023

Ans. (a)

The number of judges in a high court in India may be decided by the President of the country. According to Article 216 of the Indian Constitution, each High Court will have a Chief Justice and as many other judges as the President may decide to appoint on a case-by-case basis. Significantly, Article 216 states that every High Court shall consist of a Chief Justice and such other Judges as the President may from time to time deem it necessary to appoint: Provided that the Judges so appointed shall at no time exceed in number such maximum number as the President may, from time to time, by order fix in relation to that Court.

2. **Which High Court stated that the divorce, by saying 'Talaq' 3 times, is illegal?**
 - (a) Calcutta HC
 - (b) Allahabad HC
 - (c) Bombay HC
 - (d) Punjab HC

39th B.P.S.C. (Pre) 1994

Ans. (b)

Allahabad High Court decided in the case of Rahmatullah Vs State of UP 1994 that the divorce by saying Talaq for 3 times is illegal. It violates articles 14 and 15. It is noteworthy that under 'The Muslim Women (Protection of Rights on Marriage) Act, 2019, any pronouncement of talaq by a Muslim husband upon his wife, by words either spoken or written or in electronic form or in any other manner whatsoever, shall be void and illegal.

3. **Which of the following High Courts has its jurisdiction over more than one state or Union Territory?**
 - (a) Allahabad
 - (b) Delhi

(c) Gujarat

(d) Bombay

38th B.P.S.C. (Pre) 1992

Ans. (d)

Bombay High Court has its Jurisdiction over more than one State or Union Territories. It has Jurisdiction over the States of Maharashtra, Goa, Union Territory of Dadra and Nagar Haveli and Daman and Diu.

4. **What is the nature of the dispute of Babri Mosque/Ramjanmabhoomi Case before Allahabad High Court?**
 - (a) Writ petition
 - (b) Title suit
 - (c) Claim for compensation
 - (d) Judicial review petition

45th B.P.S.C. (Pre) 2001

Ans. (b)

The dispute of Babri Mosque/Ramjanmabhoomi is presented before Allahabad High Court as a case of Title Suit, in which two separate communities have claimed for the same land and property.

5. **A High Court Judge addresses his letter of resignation to—**
 - (a) The President
 - (b) The Chief Justice of India
 - (c) The Chief Justice of his High Court
 - (d) The Governor of the State

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a)

According to Article 217(1)(a), a Judge of High Court may, by writing under his hand addressed to the President, resign his office.

6. **The mobile court in India is the brain child of –**
 - (a) Justice Bhagwati
 - (b) Mr. Rajeev Gandhi
 - (c) Dr. A.P.J. Abdul Kalam
 - (d) Mrs. Pratibha Patil

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (c)

Former President of India Dr. A.P.J. Abdul Kalam first imagined about mobile Courts. The first mobile Court of India was established in August 2007 in Mewat district of Haryana. It was inaugurated by the then Chief Justice K.G. Balakrishnan. The concept of the mobile Court is based on the pressing need to take the administration of civil and criminal justice closer to the people so that those living in remote areas could benefit without incurring the expenses of travelling to Courts at distant places.

7. Which of the following Constitutional Amendment in India made judiciary subservient of Parliament?

- (a) 42nd Constitutional Amendment
- (b) 43rd Constitutional Amendment
- (c) 40th Constitutional Amendment
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 1-5}–2024

Ans. (a)

The 42nd Constitutional Amendment, enacted in 1976 during the Emergency period under Prime Minister Indira Gandhi, brought several significant changes to the Indian judiciary. It is often referred to as the "Mini-Constitution" due to the extensive nature of the amendments it made. Key changes affecting the judiciary included :

- **Curtailling the power of judicial Review**—The 42nd Amendment sought to limit the judiciary's power to review and invalidate laws passed by Parliament, especially in the context of fundamental rights.
- **Amendment of Article 368**—The amendment made it clear that constitutional amendments made by Parliament could not be questioned in any court, effectively restricting the judiciary's role in reviewing constitutional amendments. Etc.

While the 42nd Amendment was controversial for its attempt to curtail the judiciary's independence, many of its provisions were reversed or diluted by the 44th Constitutional Amendment in 1978 after the Emergency ended. The 44th Amendment restored much of the judiciary's power, especially its ability to review laws and protect fundamental rights.

The Centre-State Relation

1. In which one of the following years was Sarkaria Commission, which was empowered to recommend changes in Centre-State relations submitted its report?

- (a) 1983
- (b) 1984
- (c) 1985
- (d) 1987
- (e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (e)

To consider the relationship between Union and State and to give suggestions to strengthen it, a commission was formed under the Chairmanship of Justice R.S. Sarkaria on 9 June, 1983. B. Shivaraman and S.R. Sen were the two members of this Commission. This Commission submitted its report in January, 1988.

Emergency Provisions

1. The President can declare National Emergency on the basis of –

- (a) Armed rebellion
- (b) External Aggression
- (c) War
- (d) All above mentioned reasons

46th B.P.S.C. (Pre) 2002

Ans. (d)

A state of emergency in India means a period of governance that can be proclaimed by the President of India during certain odd situations. According to the constitutional provision, under the advice of Cabinet of Ministers, the President can overrule many provisions of the Constitution, that guarantees Fundamental Rights to the citizens. Provisions related emergency are contained in the Part XVIII of the Constitution from Article 352 to 360. There can be three types of emergencies–

- National Emergency
- Constitutional Emergency
- Financial Emergency

National Emergency can be declared under Article 152 by the President Emergency can be declared on various grounds–

- War, external aggression — External Emergency
- Armed rebellion — Internal Emergency.

2. According to which Article 'National Emergency may be declared by the president of India?

- (a) Article 352
- (b) Article 370
- (c) Article 371
- (d) Article 395

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

See the explanation of the above question.

3. The proclamation of emergency at the first instance can be restricted to

- (a) 3 months
- (b) 15 days
- (c) 6 months
- (d) 1 year
- (e) None of the above/More than one of the above

B.P.S.C. CDPO 2018

Ans. (c)

Indian constitution Article 352 (5) say that proclamation of emergency at the first instance can be restricted to six month from the date of the passing of the second of the resolution approving the proclamation.

4. Mainly on whose advice the President's Rule is imposed in the State?

- (a) Chief Minister
- (b) Legislative Assembly

- (c) Governor (d) Chief Justice of High Court
45th B.P.S.C. (Pre) 1997

Ans. (c)

Under Article 356, the President's Rule in a State is imposed by the President on the recommendation of the Governor of the State.

The Finance Commission

1. Under which one of the following Articles is the formation of Finance Commission laid down?

- (a) Article 280 (b) Article 269
(c) Article 268 (d) Article 265

64th B.P.S.C. (Pre) 2018

Ans. (a)

Article 280 of the Constitution provides for the formation of the Finance Commission after the expiration of every fifth year or at such earlier time as President considers necessary. Its main function is to submit recommendations to the President regarding the allocation of net proceeds of taxes between the Union and the States and the method of distribution among the States. It is important to mention here that the Finance Commission was constituted by Presidential order dated 22nd November, 1951 under the Chairmanship of Shri K.C. Neogy on 6th April, 1952.

2. Federal Finance Commission in India relates to –

- (a) Finances among the States
(b) Finances between States and the Centre
(c) Finances between the Centre and Local Self Governments
(d) None of these

43rd B.P.S.C. (Pre) 1999

Ans. (b)

The Federal Finance Commission in India is related to finances between the States and the Centre.

The Planning Commission/ NITI AAYOG

1. When was the Planning Commission established?

- (a) 10th March, 1950 (b) 15th March, 1950
(c) 16th March, 1951 (d) 20th March, 1950

47th B.P.S.C. (Pre) 2005

Ans. (b)

The Planning Commission was a non-Constitutional institution. It is not mentioned in the Constitution. The Commission was formed by a resolution of the Cabinet on March 15, 1950. Prime Minister used to be the ex-officio Chairman of this Commission. Its main function was to prepare a 5-year plan for the Union and to give suggestions on annual plans of the States. Almost 70 percent grants to the States by Centre were given on the recommendation of the Commission. NITI Aayog has replaced the Planning Commission. It is also an extra-constitutional body. It has been formed by a resolution of the Union Cabinet on 1 January, 2015.

2. Who among the following is the CEO of the NITI Aayog?

- (a) Amitabh Kant (b) S. S. Mundra
(c) Cyrus Mistry (d) Soumya Kanti Ghosh
(e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (a)

At the time of the question, Amitabh Kant was the CEO of NITI Aayog. Presently, B.V.R. Subrahmanyam is the CEO of the NITI Aayog.

3. In Government of India's NITI Aayog, which is an economic policy making think tank, what is the full form of NITI?

- (a) National Internal Trade Information
(b) National Institution for Transforming India
(c) National Intellectual Training Institute
(d) None of the above

64th B.P.S.C. (Pre) 2018

Ans. (b)

The full form of NITI is National Institution for Transforming India.

Lokpal and Important Commissions

1. The Chairman of the Constitutional Review Commission set up in February, 2000 is-

- (a) M.N. Venkatachaliah (b) R.S. Sarkaria
(c) Krishna Iyer (d) Fatima Beevi

45th B.P.S.C. (Pre) 2001

Ans. (a)

The National Commission to review the working of the Constitution was set up by the NDA Government on 22 February, 2000 under the Chairmanship of Justice Venkatachaliah which was not approved by Parliament. The function of this Commission was to review the implementation of the Constitution in last 50 years and to evaluate its effectiveness at present. The last report by the Commission was submitted on March 31, 2002.

2. Who is the first Chairman of the Backward Classes Commission?

- (a) Jagjivan Ram
- (b) Kaka Saheb Kalelkar
- (c) B. D. Sharma
- (d) B. R. Ambedkar
- (e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (b)

The first All India Backward Classes Commission was set up by the President of India on 29th January 1953. The first chairman of the commission was Kaka Saheb Kalelkar. The Commission, popularly known as the Kaka Kalelkar Commission, was required "to investigate the conditions of socially and educationally backward classes within the territory of India and difficulties under which they labour and to make recommendations as to the steps that should be taken by the Union or any State to remove difficulties and to improve their conditions. The Commission submitted its report on 30th March, 1955.

3. The Chairman of the State Public Service Commission is appointed by?

- (a) The Chairman of the Union Public Service Commission
- (b) The President of India
- (c) The Governor of the State
- (d) The Chief Minister
- (e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (c)

Parallel to the Union Public Service Commission (UPSC) at the Centre, there is a State Public Service Commission (SPSC) in a State. The same set of articles (i.e., 315 to 323 in part XIV) of the Constitution also deals with the composition appointment and removal of members, power and functions and independence of a SPSC. Therefore the Chairman and members of the SPSC are appointed by the Governor and they can be removed only by the President.

Temporary Special Provisions

1. Which one of the following States was never granted the Special Category Status (SCS) by Central Government?

- (a) Bihar
- (b) Sikkim
- (c) Himachal Pradesh
- (d) Jammu and Kashmir
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (a)

Special category status is being provided to Sikkim, Himachal Pradesh and Jammu and Kashmir in the list, but Bihar has not been given special category status by the Central Government.

2. Which Article in the Indian Constitution is related with the establishment of the Election Commission of India?

- (a) Article 324
- (b) Article 148
- (c) Article 342
- (d) Article 325
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (a)

The Constitution of India provides for an Election Commission under Article 324 for the superintendence, direction and control of the preparation of the electoral rolls for and the conduct of, all elections to Parliament, State Legislative Assemblies, President and Vice-President.

Election Commission

1. The Lower age limit of voters of Union and State Legislature was reduced from 21 years to 18 years by

- (a) 57th Amendment, 1987
- (b) 60th Amendment, 1988
- (c) 61st Amendment, 1989
- (d) 65th Amendment, 1990

41st B.P.S.C. (Pre) 1996

Ans. (c)

61st Constitutional Amendment Act, 1988, reduced the age for Right to Vote from 21 years to 18 years which came into force in March 28, 1989. The right to vote was primarily used by the youths in November, 1989 in the General Elections of Lok Sabha.

Political Parties

1. Any political party could be recognized as National Party, if–

1. it is recognized as a State party in four states
2. it secures 4% valid votes in Lok Sabha or State Legislative Assembly
3. it wins 2% of seats in Lok Sabha at general election from three States

Select the correct answer.

- (a) 1 only (b) 2 and 3
(c) 1 and 3 (d) None of the above

BPSC Agriculture Department-2024

Ans. (c)

A political party would be considered (if it satisfies any of the below conditions) a national party if : it is 'recognized' in four or more states as a state party; or if its candidates polled at least 6% of total valid votes in any four or more states in the last Lok Sabha or Assembly elections and has at least four MPs in the last Lok Sabha polls; or if it has won at least 2% of the total seats in the Lok Sabha from not less than three states.

2. To be recognized as National Party in India, a party must have secured at least how much percentage of votes in the previous election?

- (a) At least 10 percent of valid votes in four or more States
(b) At least 4 percent of valid votes in four or more States
(c) At least 15 percent of valid votes in four or more States
(d) At least 6 percent of valid votes in more than half of the States
(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (e)

A political party gets recognized as a National Party by the Election Commission if it fulfils any of the three following conditions:

- (1) If the party wins 2 percent of seats in the Lok Sabha (11 seats) from at least three different States. or
- (2) In Lok Sabha or Legislative Assembly, the party secures 6 percent of the total valid votes in at least 4 States, and it wins at least four seats in the House of the People from any State or States. or
- (3) A party has got recognition as a State party in at least four or more States.

3. Match the List–I of National Political Parties of India, with List–II of the years of their formation and select the correct answer from the code given below the lists :

List–I (Names of the political parties)	List–II (Years of their formation)
A. All India Trinamool Congress	1. 1984
B. Bahujan Samaj Party	2. 1980
C. Bharatiya Janata Party	3. 1964
D. Communist Party of India- Marxist (CPI-M)	4. 1998

Code :

- A B C D
(a) 4 3 2 1
(b) 1 2 3 4
(c) 4 1 2 3
(d) More than one of the above
(e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (c)

National parties–		
Party		Founded
Bharatiya Janata Party	BJP	April 1980
Communist Party of India (Marxist)	CPI(M)	November 1964
Indian National Congress	INC	December 1885
All India Trinamool Congress	AITC	1998
BahujanSamaj Party	BSP	April, 1984

4. Aam Aadmi party is a :

- (a) State party (b) National Party
(c) Regional party (d) Registered party
(e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (e)

The Aam Aadmi Party is a state level registered party, as all Political Parties are registered. Hence it is also a registered party. Hence, option (e) is the appropriate answer.
Note : After the Gujarat Assembly election - 2022, Aam Aadmi Party has qualified for the National Party.

5. Who is empowered to recognize various political parties in India as National or Regional Parties?

- (a) The Parliament (b) The President

- (c) The Election Commission (d) The Supreme Court
45th B.P.S.C. (Pre) 2001

Ans. (c)

The Election Commission accords recognition to political parties as National or State Parties in accordance with the norms laid down in the Election Symbols (Reservation and Allotment) Order, 1968.

6. Consider the following statements regarding the political parties in India:

1. The Representation of the People Act, 1951 provides for the registration of political parties.
2. Registration of political parties is carried out by the Election Commission.
3. A National level political party is one which is recognized in four or more states.
4. During 1999 general elections, there were six National and 48 State level parties recognized by the Election Commission.

Which of the statement above are correct?

- (a) 1, 2 and 4 (b) 1 and 3
(c) 2 and 4 (d) 1, 2, 3 and 4

45th B.P.S.C. (Pre) 2001

Ans. (d)

The Representation of the People Act, 1951 provides for the registration of political parties. The registration of political parties is carried out by the Election Commission of India. The Election Commission has decided that a political party shall be eligible to be recognized as National party if –

(i) It secures at least six percent (6%) of the valid votes polled in any four or more states at general election to the House of People (Lok Sabha) or to the State Legislative Assembly (Rajya Vidhan Sabha) and wins at least four seats in the House of People from any State or States, or it wins at least two percent (2%) seats in the House of People (i.e., 11 seats in the existing House having 543 members), and these members should be elected from at least three different states. Currently, there are 8 national political parties in India.

7. Name the political party which is not a part of a composite central government, but their member has been elected speaker of the thirteenth Lok Sabha.

- (a) Telugu Desam party (b) Samata party
(c) Janata party (d) None of these

43rd BPSC (Pre) 1999

Ans. (a)

Speaker of the twelfth and thirteenth Lok Sabha was CMC Balayogi, who was a member of Telugu Desam party. This party did not join the Coalition government of the National Democratic Alliance (NDA)

Constitutional Amendment

1. Which Constitutional Amendment Act has added new provisions related to cooperative societies in fundamental rights and DPSPs of the Constitution of India?

- (a) 97th Constitutional Amendment Act of 2011
(b) 96th Constitutional Amendment Act of 2011
(c) 95th Constitutional Amendment Act of 2009
(d) None of the above

BPSC Agriculture Department-2024

Ans. (a)

The 97th Amendment Act of 2011 to the Constitution of India added provisions related to cooperative societies in the fundamental rights and Directive Principles of State Policy (DPSPs).

2. A Bill for the amendment in Indian Constitution can be presented -

- (a) Only in Lok Sabha
(b) Only in Rajya Sabha
(c) Either in Lok Sabha or Rajya Sabha
(d) In the Supreme Court of India

38th B.P.S.C. (Pre) 1992

Ans. (c)

In India, the amendment to the Constitution can be initiated in either House of the Parliament. It has been laid down under Article 368(2) of the Constitution, but the process requires a majority of members of both the Houses. In the case of voting, it will be mandatory for the approval of the amendment to be passed by a majority of total membership of that House and a majority of not less than 2/3rd of the members present and voting. In India, the process of Constitutional Amendment is taken from the Constitution of South Africa.

3. When was the first Bill for the amendment of the Indian Constitution presented?

- (a) 1950 (b) 1951
(c) 1955 (d) 1958

38th B.P.S.C. (Pre) 1992

Ans. (b)

The First Amendment Bill to the Indian Constitution was presented in 1951 through which Articles 15, 19, 85, 87, 174, 176, 341, 342, 372, 376 were amended and two new Articles 31(a) and 31(b) and 9th Schedule was added to the Constitution.

4. Which of the following Constitutional Amendment Acts was termed as Mini Constitution?

- (a) 42nd (b) 44th
(c) 46th (d) 50th

47th B.P.S.C. (Pre) 2005

Ans. (a)

Several provisions of the Constitution were altered, and several new provisions were added by 42nd Constitutional Amendment in 1976. So it is also termed as mini Constitution. The main objective of 42nd Constitutional Amendment was to overcome the difficulties arising from the decision of the Supreme Court in Keshavananda Bharati Case 1973. The Supreme Court made it clear in its judgment that certain features of the Constitution are so essential that they cannot be abrogated from the Constitution of India.

Official Language

1. Which Article of the Indian Constitution prescribes Hindi in Devanagari script as the official language of the Union?

- (a) 341 (b) 342
(c) 343 (d) 346
(e) None of the above/More than one of the above

B.P.S.C. CDPO 2018

Ans. (c)

Article 343(1) Part XVII of Indian Constitution is written that the official language of the union shall be Hindi in Devanagari Script. The form of numerals to be used for the official purposes of the union shall be the International form of Indian numerals.

2. The number of official languages recognised by the constitution in the eight schedule is.....

- (a) 16 (b) 17
(c) 18 (d) 20

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (*)

Before 92nd Constitution Amendment Act, 2003 there were total 18 languages in the Eighth Schedule of the Constitution which increased to 22 after 92nd Constitution Amendment Act.

Panchayati Raj and Community Development

1. Which one of the following was established as the first programme of community development?

- (a) Cooperation Movement
(b) National Extension Service
(c) Integrated Rural Development Programme
(d) More than one of the above
(e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (b)

The Community Development Programme (CDP) was the first major rural development programme launched after independence in 1952. Core objective of this program was to bring community development. The three phases of community development were National Extension Phase, Intensive Community Development Project Phase and Post-Intensive Development Phase. It is worth mentioning here that the National Extension Service program was formulated in April 1953 and it was inaugurated in October, 1953. It was formed after the Indian government realized that the Community Development Programme, which was formed in 1952, cannot be implemented all over India due to a shortage of funds.

2. The minimum age for contesting elections to the Panchayati Raj Institutions should be how many years according to the 73rd Constitutional Amendment Act?

- (a) 18 years (b) 21 years
(c) 25 years (d) More than one of the above
(e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (b)

Decentralization is the process in which Power is divided in many units. As for the local self government's structure in India, Panchayati Raj Institution is a system of local self-government in rural areas of the Indian subcontinent. Local Self-Government helps in the management of local affairs. It is important to mention here that such local bodies have representatives who have been elected by the local people and hence have a better understanding of grassroot level issues. Thus, the minimum age that a person should have for contesting elections is 21 years. The 73rd Amendment added Part IX to the constitution of India and was titled "The Panchayats". Furthermore, Part IXA of the constitution, titled "The Municipalities", was added by the 74th Amendment.

3. Panchayati Raj was first Introduced in–

- (a) Andhra Pradesh
- (b) Uttar Pradesh
- (c) Himachal Pradesh
- (d) Rajasthan

43rd BPSC (Pre) 1999

Ans. (d)

Article 40 of the Indian constitution directs states to constitute panchayats. In 1957, Balwant Rai Mehta committee recommended to establish three tier panchayat system. Based on its recommendation, Pt. Jawaharlal Nehru inaugurated Panchayati Raj in Nagaur district of Rajasthan on October 2, 1959 after that Andhra Pradesh also implemented this system and became the second state to implement Panchayati Raj system.

4. The decision to conduct Panchayat Elections is taken by which of the following?

- (a) The Central Government
- (b) The State Government
- (c) The District Judge
- (d) The Election Commission

47th B.P.S.C. (Pre) 2005

Ans. (b)

Panchayat is enumerated in State List as 5th entry in the 7th Schedule to the Constitution. It is the subject of State Government, and the State Government has the power to constitute it and conduct its elections.

5. The subject of Panchayati Raj is in –

- (a) Concurrent List
- (b) Union List
- (c) State List
- (d) Residual List

63rd B.P.S.C. (Pre) 2017

39th B.P.S.C. (Pre) 2005

Ans. (c)

See the explanation of the above question.

6. Which one of the following functions is not the concern of Local Self- Government?

- (a) Public Health
- (b) Sanitation
- (c) Public Utility Services
- (d) Maintenance of Public Order
- (e) None of the above / more than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (d)

Maintenance of Public Order is not the concern of Local Self Government. Public Health, Public Utility Services, Sanitation, Roads and Bridges, Developmental Schemes etc. are related to Local Self Government. Article 243(g) provides for powers, authority and responsibilities of Panchayats. Likewise Article 243W provides for powers, authority and responsibilities of Municipalities.

7. 73rd Amendment of the Constitution is related to -

- (a) Impeachment of the president
- (b) The appointment of the election commission
- (c) Reservation of seats in educational institutions
- (d) Panchayati Raj System

44th BPSC (Pre) 2001-02

Ans. (d)

Panchayati Raj Institutions were made constitutional by the 73rd constitutional Amendment Act, 1992.

8. The legislative origins of the 73rd Constitutional Amendment Act can be traced back to which Constitutional Amendment Bill?

- (a) 61st Constitutional Amendment Bill
- (b) 62nd Constitutional Amendment Bill
- (c) 63rd Constitutional Amendment Bill
- (d) 64th Constitutional Amendment Bill
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (d)

The 64th Amendment Bill was prepared in 1989 and introduced in Lok Sabha in July 1989, to confer constitutional status to Panchayati Raj Institutions. This was the first attempt by any government to do so after independence.

9. Which of the following was constituted under the Panchayati Raj system?

- (a) Khap Panchayat
- (b) Caste Panchayat
- (c) Gram Panchayat
- (d) Jan Panchayat
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (c)

Gram Panchayat consists of a village or a group of villages divided into smaller units called "Wards". Each ward selects or elects a representative who is known as the Panch or ward member. The members of the Gram Sabha elect the ward members through the direct election. The Sarpanch or the President of the Gram Panchayat is elected by the Ward members as per the state Act. The Sarpanch and the panch are elected for a year or five years.

10. Which Article of the Indian Constitution directs state Government to organize village Panchayats?

- (a) Article 32 (b) Article 40
(c) Article 48 (d) Article 51

39th B.P.S.C. (Pre) 1994

Ans. (b)

Article 40 of the Constitution directs the States to constitute Gram Panchayats. It is included in the Directive Principles of State Policy. Article 40 provides that the State shall take steps to organize village Panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-governance.

11. Panchayati Raj is organized as a unit of Self-Government under –

- (a) Fundamental Rights of Indian Constitution
(b) The Preamble of the Indian Constitution
(c) Directive Principles of State Policy
(d) 73rd Amendment of the Indian Constitution

43th B.P.S.C. (Pre) 1999

Ans. (d)

The local self-government in India has been formulated under the Panchayati Raj System. 73rd Amendment of the Constitution 1992 gave it Constitutional status.

12. What is the main characteristic of Panchayati Raj System of Government?

- (a) It has three tiers of Government.
(b) It aims to give social and economic justice to villages.
(c) Some members of Parliament are as representatives in Zila Parishad.
(d) All of these are true.

38th B.P.S.C. (Pre) 1992

Ans. (d)

Panchayati Raj is a system of local self-government with three tier system- Gram Panchayat at the village level, Panchayat Samiti at the block level and Zila Parishad at the district level. The Panchayati Raj System is aimed at achieving the goal of economic development and social justice.

13. To review the financial position of Panchayats, the State Government constitutes every five years a/an –

- (a) Finance commission (b) Finance committee
(c) Advisory commission (d) Advisory committee
(e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (a)

The state Government constitutes a finance commission every five years to review the financial condition of state panchayats. There is a provision for Constitution of finance commission under Article 243 (I) of the Constitution. Under this, the Finance Commission is constituted by the Governor.

14. What is the objective of community development?

- (a) Economic development
(b) Build human capital
(c) Environment protection
(d) Harmonious life
(e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (e)

All around development of any community: For example - physical, social, moral and cultural development is called 'Community Development'. The main creator of community development in India S.K. Dey says, "Live and let live". This principle is the cornerstone of community development. It includes agriculture animal husbandry. Irrigation, co-operation, education, health, social production messaging, village industry, panchayat and all important elements of life. According to the United Nations. "Community Development Programme is the process by which the efforts of individuals to improve the economic, social and cultural conditions of communities, to include these communities to contribute to National progress". Efforts of government officials also get coordinated.

15. Panchayati Raj is mainly aimed at –

- (a) Increasing rivalry among villagers.
(b) Giving training to villagers for contesting election.
(c) Decentralization of power to villagers.
(d) None of these.

43th B.P.S.C. (Pre) 1999

Ans. (c)

The principal aim of Panchayati Raj System is the democratic decentralization of power to villages and to empower them to make policies according to their need and to implement these policies.

16. For successful functioning, Panchayati Raj needs full co-operation of-

- (a) Local Public (b) Central Government
(c) Bureaucrats (d) Politicians

42nd B.P.S.C. (Pre) 1997

Ans. (a)

Full cooperation of local public is required for Panchayati Raj to work properly. The goal of this system cannot be achieved without the support and participation of the local public.

17. Panchayati Raj in India represents –

- (a) Decentralisation of powers
- (b) Participation of the people
- (c) Community development
- (d) All of these

44th B.P.S.C. (Pre) 2000

Ans. (d)

The Panchayati Raj System is established for full advancement and development of villagers. Panchayati Raj represents decentralization of democratic power, Community development, and participation of people.

18. Which State does not have Panchayat system?

- (a) Nagaland
- (b) Mizoram
- (c) Meghalaya
- (d) Kerala
- (e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (e)

Article 9 of the Indian Constitution has provisions related to Panchayats from Articles 243 to 243O. As per clause (2) of Article 243 M, the provisions relating to panchayats shall not apply to the hill areas of Nagaland, Meghalaya and Mizoram Manipur where district councils exist. Hence the correct answer to this question is (e) i.e. 'More than one of the above'.

19. Which one of the following is not the characteristic of decentralization?

- (a) Autonomy
- (b) People's participation
- (c) To instill non-confidence among local communities
- (d) To empower local communities
- (e) None of the above/More than one of the above.

66th B.P.S.C. (Pre) 2020

Ans. (c)

Decentralization means delegation of authority to make decisions to the lowest possible organisational hierarchy level. Under decentralization, an organization's central unit distributes functions, responsibility and accountability to regional and local units. Thus, decentralization marks an extension of the process of delegation. Thus, autonomy of regional or local units, People's Participation and to empower local communities is the characteristics of the decentralization, while non-confidence among local communities is not the characteristic of decentralization.

20. Name the Committee which was set up by the NDC in 1957 for the reorganization of CDP and NES, which suggested a three-tier system of rural local government-

- (a) Balwant Rai Mehta Committee
- (b) Ashok Mehta Committee
- (c) Maharashtra Committee on Democratic Decentralisation
- (d) Rural-Urban Relationship Committee

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

The Community Development Programme (CDP) was started in 1952, and National Extension Scheme (NES) was started in 1953. Balwant Rai Mehta Committee was constituted in 1957 by National Development Council for the reorganization of CDP and NES. This Committee recommended three-tier Local-self Government under Panchayati Raj System.

21. Match List-I with List-II and select the correct answer using the codes given below the Lists :

List - I (Panchayati Raj Committees)	List - II (Years)
A. C.H. Hanumantha Rao	1. 1985
B. G.V.K. Rao	2. 1986
C. Ashok Mehta	3. 1984
D. L.M. Singhvi	4. 1957
E. Balwant Rai Mehta	5. 1978

Codes

(a)	A	B	C	D	E
	4	5	1	3	2
(b)	A	B	C	D	E
	2	4	1	3	5
(c)	A	B	C	D	E
	5	3	2	4	1
(d)	A	B	C	D	E
	3	1	5	2	4

- (e) None of the above / More than one of the above.

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (d)

Balwant Rai Mehta Committee was constituted in 1957 and recommended a three-tier system of Panchayati Raj. Ashok Mehta Committee was constituted in 1977 and submitted its report in 1978. Mehta committee recommended to replace three-tier system by two-tier system. In 1985 G. V. K. Rao Committee was constituted and it recommended

for improvement in representative character of Panchayat. L.M. Singhvi Committee was constituted in 1986, which recommended local self-government and allocation of more financial resources to village Panchayats. In 1984 Hanumantha Rao Committee was constituted and it recommended for decentralization of functions, powers and finance, setting up of district planning bodies and district planning cells.

22. The Chairman of the Committee set up for the recommendation of Panchayati Raj in India was –

- (a) Balwant Rai Mehta (b) B.R. Ambedkar
(c) Justice Krishna Ayer (d) Jagjivan Ram

38th B.P.S.C. (Pre) 1992

Ans. (a)

The correct match of List-I with List-II is as follows :

List-I Committees	List-II Year
P.K. Thungan	1988
Ashok Mehta	1977
Balwant Rai Mehta	1957
L.M. Singhvi	1986

23. The committee on whose recommendation, the ‘Panchayati Raj System’ was introduced in the Country, was headed by –

- (a) Jivraj Mehta (b) Balwant Rai Mehta
(c) Shrimannarayan (d) Jagjivan Ram

47th B.P.S.C. (Pre) 2005

Ans. (b)

See the explanation of the above question.

24. The Panchayati Raj System was first started in India in the State of Rajasthan and

- (a) Haryana (b) Gujarat
(c) Uttar Pradesh (d) Andhra Pradesh

47th B.P.S.C. (Pre) 2005

43rd B.P.S.C. (Pre) 1999

Ans. (d)

Rajasthan is the first State to establish Panchayati Raj system on 2 October, 1959 in Nagaur district while Andhra Pradesh is the second State to establish Panchayati Raj System.

25. The Decentralization System was recommended by -

- (a) C. Rajagopalachari (b) J.B. Kripalani
(c) Balwant Rai Mehta (d) Ashok Mehta

56th to 59th B.P.S.C. (Pre) 2015

Ans. (c)

Balwant Rai Mehta recommended in 1957 about the three-tier democratic Panchayati Raj System to be set up at the village, block and district level.

26. Ashok Mehta Committee recommended –

- (a) Three-tier Government of Panchayati Raj
(b) Two-tier Government of Panchayati Raj
(c) Single-tier Government of Panchayati Raj
(d) Multiple-tier Government of Panchayati Raj

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (b)

Ashok Mehta committee was constituted in 1977, which submitted its report in August 1978. The committee in its report had recommended for ‘two tier’ system in place of ‘three tier’ system. The two-tier system or model was - Zila Parishad at the district level and Mandal Panchayat at the Mandal level which consisted of a group of villages covering a population of 15000 to 20000.

27. Which one of the following Committees/Commissions recommended the creation of Nyaya Panchayats?

- (a) Balwant Rai Mehta Committee
(b) Ashok Mehta Committee
(c) G.V.K. Rao Committee
(d) Sarkaria Commission
(e) None of the above / more than one of the above

63rd B. P.S.C. (Pre) 2017

Ans. (b)

Ashok Mehta Committee recommended the Creation of Nyaya Panchayats. The Committee recommended that Nyaya Panchayats should be kept as separate bodies and should not be mixed with the people elected for the development of Panchayats. The Committee was in favour of a combination of a qualified Judge to preside over a bench of separately elected Nyaya Panchayats. The elected Nyaya Panchayats will not be entitled to seek re-election, they should serve in an area other than that from which they have been elected.

28. Which Constitutional Amendment granted Constitutional Status to Panchayati Raj Institutions?

- (a) 73rd Amendment
(b) 71st Amendment
(c) 74th Amendment
(d) None of these

45th B.P.S.C. (Pre) 2001

44th B.P.S.C. (Pre) 2000

Ans. (a)

Panchayat Raj System was given a Constitutional Status by 73rd Amendment by inserting Part IX and 11th Schedule to the Constitution. Seventy-third Amendment, 1992 came into force on April, 1993.

29. Which Article gives the list of 29 functions to be performed by the Panchayati Raj Institutions?

- (a) Article 243(H) (b) Article 243(E)
- (c) Article 243(F) (d) Article 243(G)
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (d)

According to Article 243(G) subject to the provisions of this constitution, the Legislature of a state may, by law, endow the Panchayats with such powers and authority as may be necessary to enable them to function as an institution of self-government and such law may contain provisions for the devolution of powers and responsibilities upon Panchayat at the appropriate level, subject to such conditions as may be specified therein, with respect to-

- (a) The preparation of plans for economic development and social justice;
- (b) The implementation of schemes for economic development and social justice as may be entrusted to them including those in relation to the matters listed in the Eleventh Schedule.

30. Which State Governments have provided 50 percent reservation for women in local bodies up to 2010?

- (a) Bihar, Uttar Pradesh, Rajasthan
- (b) Bihar, Madhya Pradesh, Himachal Pradesh
- (c) Bihar, Madhya Pradesh, Kerala
- (d) Bihar, Himachal Pradesh, Uttar Pradesh

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (*)

In 2011, when the question was asked, 50 percent seats were reserved for women in Panchayats in the State of Bihar, Madhya Pradesh, and Himachal Pradesh. At present, 50% seats in Panchayats for women are reserved in Andhra Pradesh, Kerala, Chhattisgarh, Jharkhand, Maharashtra, Odisha, Rajasthan, Tripura, Bihar, Uttarakhand, Madhya Pradesh, Assam, Gujarat, Karnataka, Sikkim, Tamil Nadu, Telangana, West Bengal, Punjab and Himachal Pradesh.

31. 50% reservation for women in Panchayati Raj Institutions is legalized in certain States such as:

- I. Bihar II. Uttarakhand**

III. Madhya Pradesh

IV. Himachal Pradesh

- (a) Only III (b) Only II and III
- (c) II, III and IV (d) I, II, III and IV
- (e) None of the above / more than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (d)

See the explanation of the above question.

32. The Three-tier system of Panchayati Raj consists of-

- (a) Gram Panchayat, Panchayat Samiti, Block Samiti
- (b) Gram Panchayat, Block Samiti, Zila Parishad
- (c) Block Samiti, Zila Parishad, Panchayat Samiti
- (d) Gram Panchayat, Panchayat Samiti, Zila Parishad

45th B.P.S.C. (Pre) 2001

Ans. (d)

The Three-tier Panchayati Raj System consists of Gram Panchayat, Panchayat Samiti (Block Panchayat) and Zila Parishad.

33. A Panchayat Samiti at the block level in India is only a/an

- (a) Advisory Body
- (b) Consultative Committee
- (c) Coordinating and Supervisory Authority
- (d) Administrative Authority
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (d)

The Panchayat Samiti at block level is an administrative body. The functions of Panchayat Samiti relate both to co-ordination and execution. Zila Parishad is a Supervisory and co-ordinating body.

34. Which is not among the powers of Panchayati Raj Institutions in India?

- (a) Implementation of Land Reforms
- (b) Judicial Review
- (c) Implementation of Poverty Alleviation Programmes
- (d) None of these

40th B.P.S.C. (Pre) 2000

Ans. (b)

Judicial Review is not the power of Panchayati Raj Institution. It is a power of Judiciary. The legislative and executive actions are subject to review by the Supreme Court of India in accordance with the Principle of Judicial review.

35. A Panchayat Samiti at the block level is –

- (a) An advisory body

- (b) An administrative authority
- (c) An advisory committee
- (d) A supervisory authority

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (b)

Panchayat Samiti is the local Government body at the Block level. The Panchayat Samiti is a link between the Gram Panchayats and Zila Panchayat. It works as an administrative authority. The Panchayat Samiti collects all the prospective plans prepared at Gram Panchayat level and processes them for funding and implementation by evaluating them.

36. Who amongst the following is a land record officer?

- (a) Patwari
- (b) Lambardar
- (c) Zamindar
- (d) Zaildar
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (a)

Land Record officer is Patwari at sub-division or Tehsil level. His job encompasses visiting agricultural lands and maintaining a record of ownership and tilling.

37. What is the objective of Community Development Programmes?

- (a) Providing educational facilities
- (b) Improving standards of living
- (c) Political training
- (d) Helping villages in planning
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (e)

Objectives of Community Development Programme are :

- (i) To assist each village in having effective Panchayats cooperatives and schools;
- (ii) Through these village institutions, plan and carry out integrated multi-phased family, village, Block and District.
- (a) Increasing agricultural Production.
- (b) Improving existing village crafts and industries and organising new ones.
- (c) Providing minimum essential health services and improving health practices.
- (d) Providing required educational facilities for children and an adult education programme.
- (e) Providing recreational facilities and programmes.
- (f) Improving housing and family living conditions, and
- (g) Providing programmes for village women and youth.

More than one of the given option is correct. So, the correct answer is (e).

38. At what level does a Panchayat Samiti operate a Panchayati Raj structure?

- (a) Block-level body
- (b) District level
- (c) Gram Panchayat level
- (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (a)

The correct answer is Block-level body. It is important to mention here that the 73rd Constitutional Amendment Act provides for three-tier local self-govt. at the village (gram panchayat), block(panchayat samiti) and district (zila parishad) level. Gram Panchayat at the village level. Block Panchayat or Panchayat Samiti at the intermediate level i.e. the block level. Zilla Panchayat at the district level. Significantly, Panchayat samiti is a rural local government (panchayat) body at the intermediate tehsil level in India.

39. Consider the following statements :

In the post-73rd Amendment era, there has to be decentralization of

1. decision-making powers
2. system as a whole
3. judicial powers
4. administrative powers

Which of the above statements are correct?

- (a) 2, 3 and 4 only
- (b) 1, 2 and 3 only
- (c) 1, 2 and 4 only
- (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (c)

On 24 April 1993, the Constitution (73rd Amendment) Act became effective. It is worth mentioning that it was passed in 1992. The Act gave state governments the authority to take the required actions to formalize gram panchayats and enable them to function as self-governing entities. The 73rd Amendment Act was introduced by the central government of India in 1992 to solve these problems and enhance local self-government. The law was approved by both chambers and went into effect on April 24th, 1993. Part IX: The Panchayats is a new chapter that was added to the Constitution as a result of this Act.

In this act judicial power was not decentralized. These Acts provide a basic framework of decentralisation of powers and authorities to the Panchayati Raj/Municipal bodies at different levels. However, responsibility for giving it a practical shape rests with the States. States are expected to act in accordance with the spirit of the Acts to establish a strong and viable system of Local Self-Government.

Special Provision for Certain Class

1. The task of processing citizenship applications under the CAA will be undertaken by–

- (a) Postal Department
- (b) Census Department
- (c) Central Security IB
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 11-12}–2024

Ans. (d)

According to the question, the task of processing citizenship applications under the CAA will be undertaken by the Postal Department and the Census Department. The Citizenship (Amendment) Act, 2019 seeks to amend the Citizenship Act, 1955. Hence, option (d) is the correct answer.

2. The Prime Minister Lal Bahadur Shastri faced which of the following issues challenging the basic values and goals of Indian Nation?

- (a) The shortage of food for social and economic transformation
- (b) The war with Pakistan in 1965
- (c) The Anti-Hindi Agitation in South
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 1-5}–2024

Ans. (d)

Lal Bahadur Shastri, the second Prime Minister of India, encountered numerous challenges during his tenure, such as national integration, economic development, and the Indo-Pakistan War of 1965. His leadership during these critical moments was pivotal in shaping the nation's values and objectives, stressing the significance of unity and resilience in overcoming adversity.

3. After the Amendment in Indian Constitution by the Parliament on 14 August, 2007 the number of castes in the list of Scheduled Caste is –

- (a) 607
- (b) 1206
- (c) 1410
- (d) 1500

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (b)

After the Amendment made by Parliament in 2007, there were a total of 1206 Scheduled Castes in India. As per 'The Constitution (Scheduled castes Amendment) Act, 2017' total number of scheduled castes in India is 1261. According to the Census-2011 Scheduled Castes form 16.6 percent to the total population.

4. Which of the following may be known as the main cause of disappearing the rigid caste system in India?

- (a) The Constitution and its basic structure
- (b) The social reforms and economic development
- (c) The growth of literacy and education
- (d) More than one of the above
- (e) None of the above

B.P.S.C. PRT 2023 Shift II

Ans. (d)

All the above options are responsible for disappearing the rigid caste system in India. Significantly Indian Constitution has provided many provisions to abolish rigid caste system in India.

Example–Article 17, Art. 338, Art. 340 etc.

Except this there are many social reforms and economic developments as well as the growth of literacy and education are responsible for this.

Miscellaneous

1. The political tendency to build our nation mainly on nationalism is led by which of the following political party in India?

- (a) Indian National Congress
- (b) Bharatiya Janata Party
- (c) Socialist party
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 1-5}–2024

Ans. (b)

Nationalism in India has evolved through various historical phases, particularly during the struggle against British Colonialism. The BJP's emphasis on Hindutva seeks to define Indian identity primarily in terms of Hindu culture and values, which has sparked both support and opposition. The party's policies often reflect this nationalistic ideology, promoting initiatives that are framed as preserving and celebrating India's cultural heritage. This approach can influence everything from education to foreign policy, and it tends to resonate with a significant segment of the population that feels a strong connection to India's historical and cultural narratives.

2. The National Human Rights Commission was set up in which of the following years in India?

- (a) In 2003
- (b) In 1993
- (c) In 1992
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (b)

The National Human Rights Commission (NHRC) was established on October 12, 1993. It was given a statutory basis by the Protection of Human Rights Act, 1993 (PHRA). The NHRC is responsible for the protection and promotion of human rights, defined by the act as "Rights Relating To Life, liberty, equality and dignity of the individual guaranteed by the constitution or embodied in the international covenants and enforceable by courts in India".

3. 11. The principle of 'One person, one vote, one value' was not followed in the decade of 2010s, in which of the following countries?

- (a) In Fizi
- (b) In Estonia
- (c) In Iraq
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (d)

Democracy is based on a fundamental principle of political equality. In a democracy, each adult citizen must have one vote and each vote must have one value. But there are many instances of denial of equal right to vote:

- (i) In Saudi Arabia women do not have the right to vote.
- (ii) Estonia has made its citizenship rules in such a way that people belonging to Russian minority find it difficult to get the right to vote.
- (iii) In Fiji, the electoral system is such that the vote of an indigenous Fiji has more value than that of an Indian-Fijian.

4. The right to information in India is–

- (a) The Fundamental Right
- (b) The Legal Right
- (c) The Social Right
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (a)

Right to Information has been given the status of a fundamental right under Article 19 (1) of the Constitution. Article 19 (1) under which every citizen has freedom of speech and expression and have the right to know how the government works, what role does it play, what are its functions etc.

5. The Equal Remuneration Act came into existence in India, in which of the following years?

- (a) In 1982
- (b) In 1976
- (c) In 1970
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (b)

The Equal Remuneration Act was passed in 1976. This act provides for payment of equal wages for work of same and similar nature to male and female workers and for not making discrimination against female employees in the matters of transfers, training and promotion etc.

6. Who of the following was the Prime Minister of the country at the time of the formation of Mandal Commission in India?

- (a) Chaudhari Charan Singh
- (b) V.P. Singh
- (c) Morarji Desai
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (c)

The Mandal Commission, officially known as the Socially and Educationally Backward Classes Commission (SEBC), was set up on January 1, 1979 by the Indian Government under the then Prime Minister Morarji Desai. The Commission was chaired by an M.P. B P Mandal.

7. Raja Ram Mohan Roy was mainly much influenced and he started working for creation of nation state, by legacies of which of the following revolutions?

- (a) By Legacies of French Revolution
- (b) By Legacies of Russian Revolution

- (c) By Legacies of American Revolution
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 6-8}–2024

Ans. (d)

Raja Ram Mohan Roy was an unwavering social reformer, simultaneously rekindling interest in the ethical principles of the Vedanta school to counter the Western assault on Indian culture. Through his textbooks and treatises, Roy contributed to the popularization of the Bengali language while becoming the first Indian to apply the fundamental social and political ideas of the French and American revolutions to the Indian context. His legacy endures as a symbol of progressive thought and social reform in India.

8. Name the former President of China who crushed the prodemocracy movement in 1989.

- (a) Mao Tse Tung
- (b) Yang Shangkun
- (c) Jiang Zemin
- (d) More than one of the above
- (e) None of the above

B.P.S.C. School Teacher (Class 11-12) 15-12-2023

Ans. (c)

Former President of China, Jiang Zemin crushed the prodemocracy movement in 1989.

9. The ‘Operation Barga’ gained sustainable support to which of the following State Government of India, in the country?

- (a) The State Government in West Bengal
- (b) The State Government in Kerala
- (c) The State Government in Assam
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 1-5}–2024

Ans. (a)

Operation Barga was a land reform program in West Bengal that was launched in 1978 by the state government. The program's goal was to improve the economic and social status of sharecroppers, also known as bargadars, by giving them more rights and protecting them from exploitation by landlords.

10. With reference to the Consumer Disputes Redressal at the district level in India, which one of the following statements is not correct?

- (a) The District Forum entertains the complaints where the value of goods or services does not exceed rupees fifty lakhs.
- (b) The State Government can establish more than one District Forum in a district if it deems fit.

(c) One of the members of the District Forum shall be a woman.

(d) More than one of the above

(e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (e)

The correct answer is None of the above. The Central Government notified rules for Consumer Protection (Jurisdiction of the District Commission, the State Commission, and the National Commission) Rules, 2021.

According to this rule, District Commissions shall have jurisdiction to entertain complaints where the value of the goods or services paid as consideration does not exceed 50 lakh rupees. Hence, option 1 is correct.

While discussing about State Commissions, it shall have jurisdiction to entertain complaints where the value of the goods or services paid as consideration exceeds 50 lakh rupees but does not exceed 2 crore rupees.

As far as the National Commission is concerned, it shall have jurisdiction to entertain complaints where the value of the goods or services paid as consideration exceeds 2 crore rupees.

Notably, the Consumer Protection Act, of 1986 provides for a 3-tier structure of the National and State Commissions and District Forums for the speedy resolution of consumer disputes. Each District Forum is headed by a person who is or has been or is eligible to be appointed as a District Judge and each State Commission is led by a person who is or has been a Judge of the High Court. It is important to mention here that two other members, in District forum one of whom shall be a woman. Hence, option 3 is correct.

11. Match the following political parties listed in List-I with their years of establishment in List-II :

List—I (Political Parties)	List—II (Years of Establishment)
A. Communist Party of India (Marxist)	1. 1964
B. Communist Party of India	2. 1998
C. Bahujan Samaj Party	3. 1925
D. All India Trinamool Congress (AITC)	4. 1984

Select the correct answer using the codes given below.

	A	B	C	D
(a)	1	3	4	2
(b)	2	1	4	3
(c)	2	1	3	4
(d)	3	4	1	2

69th B.P.S.C. (Pre) 2023

Ans. (a)

The correct match is following –

Political Parties	Years of Establishment
Communist Party of India (Marxist)	1964
Communist Party of India	1925
Bahujan Samaj Party	1984
All India Trinamool Congress (AITC)	1998

12. Who among the following headed the two Boundary Commissions set up to delineate the international frontiers between India and Pakistan in 1947?

- (a) Cyril Radcliffe (b) A. P. Moon
(c) A. V. Alexander (d) More than one of the above
(e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (a)

Bengal and Punjab Boundary commissions were established in 1947 under chairmanship of British lawyer Cyril Radcliffe for the purpose of determining new border between India and Pakistan following independence from British rule. The Redcliffe line became the border between India and Pakistan when the Award was published on 17 August, 1947, two days after partition.

13. Sikkim became a full-fledged State of the Union of India in

- (a) 1974 (b) 1975
(c) 1976 (d) None of the above

69th B.P.S.C. (Pre) 2023

Ans. (b)

Sikkim became the 22nd State of India Vide Constitution (36th Amendment) Act 1975. The Act provides that the Legislative Assembly of Sikkim shall consist of not less than thirty two members and that "the Assembly of Sikkim formed as a result of the elections held in Sikkim in April, 1974 with 32 members elected in the said elections (herein after referred to as the sitting members) shall be deemed to be the legislative Assembly of the State of Sikkim duly constituted under the Constitution."

14. Which of the following ministries/ organizations has released 'Youth in India Report, 2022'?

- (a) Ministry of Health and Family Welfare
(b) Population Foundation of India
(c) Ministry of Statistics and Programme Implementation (MoSPI)
(d) United Nations Population Fund (UNPF)
(e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (c)

'The Youth in India Report, 2022' was released by the Ministry of Statistics and Programme Implementation (MoSPI) in July, 2022. According to the report, Bihar and Uttar Pradesh have experienced an increase in the proportion of youth population to the total population by the year 2021 and then it is likely to decline.

15. Which of the following ministries monitors 11 of the key infrastructure sectors?

- (a) Ministry of Finance
(b) Ministry of Industry and Commerce
(c) Ministry of Statistics and Programme Implementation
(d) NITI Aayog
(e) None of the above / More than one of the above

B.P.S.C. Project Manager Prelims 2021

Ans. (c)

The Infrastructure Monitoring Division under Ministry of Statistics and Program implementation monitors the performance of the infrastructure sectors with the special focus on removing the bottlenecks in the way of their accelerated growth. This division is entrusted with the monitoring of performance of the country's eleven key Infrastructure Sectors viz. Power, Coal, Steel, Railways, Telecommunication, Ports, Fertilizers, Cement, Petroleum & Natural Gas, Roads and Civil Aviation.

16. Who was the Chairman of the First Law Commission in Independent India?

- (a) Justice J. L. Kapur
(b) Justice V. K. Sundaram
(c) Justice T. V. Venkatarama Aiyar
(d) Mr. M. C. Setalvad
(e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (d)

In the year 1955, the first law commission of independent India was constituted. The then Attorney General M.C. Setalvad was appointed the chairman of the first Law commission.

17. If 'One Nation One Election' is to be realized in India, which Article of the Indian Constitution will require an amendment?

- (a) Article 83 (0) Article 172
(c) Article 356 (d) Article 246
(e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (c)

If in India 'One Nation One Election' is implemented, several articles including Article 356 of the Indian constitution would require amendment. Under Article 356, the President has

the power to dissolve the government of a state. Due to this provision, there will be difficulty in implementing the system of one state one election therefore amendment in Article 356 will be required.

18. Article 300 of the Indian constitution deal with -

- (a) Suits and Proceeding
- (b) Government contracts
- (c) Attorney General
- (d) Restrictions on trade and commerce
- (e) None of the above/more than one of the above

67th B.P.S.C. (Pre) 2021

Ans. (a)

Article 300 of the Indian constitution deals with suits and proceedings. Article 302 deals with the power of parliament to impose restrictions on trade, commerce and intercourse between a state and another or within any part of the territory of India as may be required in the public interest and Article 76 deals with the attorney general of India.

19. The division of each State into territorial constituencies for the Lok Sabha is done by the Delimitation Commission. This delimitation has been frozen till which year?

- (a) 2024
- (b) 2025
- (c) 2026
- (d) 2027
- (e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (c)

Article 82 of the Constitution provides for the delimitation of Lok Sabha seats in all the states by the Delimitation Commission after each census, but by the 84th Constitutional Amendment Act, 2001 this delimitation has been stopped till the publication of the final figures of the first census to be held after the year 2026.

20. The head of state of the United Kingdom is

- (a) Queen Elizabeth I
- (b) Queen Elizabeth II
- (c) Queen Elizabeth III
- (d) Queen Elizabeth IV
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

Head of the state of the United Kingdom is Queen Elizabeth II. She ascended to the throne of the United Kingdom of Great Britain and Northern Ireland in 1952. Prime Minister Theresa May is the head of the Government.

21. Who was the permanent Representative of India to the UN before Syed Akbaruddin?

- (a) Hardeep Singh Puri
- (b) Shashi Tharoor

- (c) Asoke Kumar Mukerji
- (d) Nirupam Sen
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (c)

Asoke Kumar Mukerji was the permanent representative of India to the UN before Syed Akbaruddin. Syed Akbaruddin is the current permanent representative of India appointed in January 2016.

22. The headquarters of International Court of Justice is situated at:

- (a) Hague
- (b) New York
- (c) Geneva
- (d) Paris

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

International Court of Justice was established in June, 1945. It is headquartered at Hague (The Netherlands).

23. Amnesty International is an organization associated with

- (a) Protection of women's rights
- (b) Protection of human rights
- (c) Abolition of untouchability
- (d) None of the above

56th to 59th B.P.S.C. (Pre) 2015

Ans. (b)

Amnesty International is a global movement of more than 7 million people in over 150 countries and territories who campaign to end abuses of Human Rights. It was founded in 1961 by British lawyer Peter Benenson. Its headquarter is in London.

24. Where is the BRICS Summit, 2019 scheduled to be held?

- (a) Brazil
- (b) India
- (c) China
- (d) Russia
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (a)

11th BRICS summit, 2019 held on 13-14 November, 2019 in Brasilia (Brazil). At present, the 2024 BRICS Summit was the sixteenth annual BRICS Summit, held in Kazan Russia.

25. Which of the following is not associated with NAFTA?

- (a) Great Britain
- (b) Canada
- (c) Mexico
- (d) None of the above

B.P.S.C. (Pre) 2018

Ans. (a)

The North American Free Trade Agreement (NAFTA) is an agreement signed by Canada, Mexico and United States. The agreement came into force on January 1, 1994.

26. What is the name of China's News Agency?

- (a) China News (b) China Times
(c) New China News Agency (d) New China Report

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (c)

The Princelings, meaning the Party's crown Princes, are the descendants of prominent and influential senior communist officials in the People's Republic of China.

27. Government Report of which of the following countries is known as 'Yellow Book'?

- (a) France (b) Britain
(c) Italy (d) Germany

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a)

Yellow Book is the government report of the French Government.

28. What is the version of the machine VVPAT used for voting in India?

- (a) M1 (b) Z1
(c) M3 (d) Z3
(e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (c)

M3 version of the VVPAT machines is used for voting in India. M3 EVMs are the third generation EVMs. It can keep data of 384 candidates M3 EVMs also has added features like Tamper Detection and Self Diagnostics.

29. The First Law University in India was established in August 1887 in –

- (a) Trivandrum (b) Ahmedabad
(c) Bangalore (d) New Delhi

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (c)

The First Law University-'National Law School of India' was established in August, 1887 in Bangalore.

30. Border Security Force came into existence in -

- (a) 1965 (b) 1970
(c) 1910 (d) 1950

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a)

The Border Security Force was raised on 1st December, 1965. It is a specialized and centrally controlled security force which is armed and trained to man international Border with Pakistan. The headquarter of BSF is in Delhi.

31. Which among the following European Union countries is the first to officially recognize the State of Palestine?

- (a) Sweden (b) Denmark
(c) Norway (d) Italy

56th to 59th B.P.S.C. (Pre) 2015

Ans. (a)

Sweden is the first European Union Country that officially recognised the State of Palestine in October, 2014. On 30 September, 2015, the Palestinian Flag was raised outside the UN Headquarter for the first time.

32. The International Day of Persons with Disabilities is celebrated on

- (a) 10th December (b) 24th October
(c) 19th November (d) 3rd December

56th to 59th B.P.S.C. (Pre) 2015

Ans. (d)

The International Day of Persons with Disabilities is celebrated every year on 3rd December. Since 1992, International Day of Persons with Disabilities has been celebrated annually on 3 December.

33. Where was the Ministerial Meeting of the Coordinating Bureau of Non-Aligned Movement (NAM) held in 2019?

- (a) Venezuela (b) Azerbaijan
(c) Serbia (d) Ethiopia
(e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (a)

The Ministerial Meeting of the Coordination Bureau of the Non-Aligned Movement (NAM) was held on 20-21 July, 2019 in Caracas of Venezuela. Currently the 19th Summit of the Non-Aligned Movement was held in January 2024 in Kampala, Uganda.

34. Montesquieu proposed a division of powers within the government between legislature, executive and judiciary in which of the following books by him?

- (a) The Spirit of the Laws
(b) My Thoughts
(c) Lettres Persanes
(d) More than one of the above
(e) None of the above

B.P.S.C. PRT 2023 Shift I

Ans. (a)

Charles Montesquieu, a philosopher proposed that power should be divided between legislature, executive and judiciary in his book 'The Spirit of the Law'.